

The Mineral Conservation And Development Rules, 1988

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Union of India - Act

The Mineral Conservation And Development Rules, 1988

UNION OF INDIA

India

The Mineral Conservation And Development Rules, 1988

Rule THE-MINERAL-CONSERVATION-AND-DEVELOPMENT-RULES-1988 of 1988

Published on 24 October 1988

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The Mineral Conservation And Development Rules, 1988

Published vide Notification G.S.R. 1023(E), dated 24.10.1988.

16.

/749

G.S.R. 1023(E), dated 24th October, 1988. - In exercise of the powers conferred by section 18 of the [Mines and Minerals (Regulation and Development) Act, 1957 (

67 of 1957

)]

[Nomenclature amended by Section 3 of the Mines and Minerals (Regulation and Development) Amendment Act, 1999 (38 of 1999), now it stands as the Mines and Minerals (Development and Regulation) Act, 1957 (

67 of 1957

);]

, the Central Government hereby makes the following rules for conservation and Development of Minerals, namely:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called The Mineral Conservation and Development Rules, 1988.

(2)

They shall come into force from the date of their publication in Official Gazette.

2.

Application.

- These rules shall apply to all minerals except-

(i)

petroleum and natural gas;

(ii)

[coal, lignite and sand for stowing;]

[Substituted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

(iii)

any mineral declared as prescribed substances for the purpose of the Atomic Energy Act, 1962 (

33 of 1962

); and

(iv)

minor minerals.

3.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

["abandonment of mine" means final closure of a mine either whole or part thereof when the mineral deposits within mine or part thereof, have been fully extracted or when the mining operations have become uneconomic;]

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

(aa)

[]

[Clause (a) renumbered as Clause (aa) by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

"Act" means the [Mines and Minerals (Regulation and Development) Act, 1957 (

67 of 1957

)]

[Nomenclature amended by Section 3 of the Mines and Minerals (Regulation and Development) Amendment Act, 1999 (38 of 1999), now it stands as the Mines and Minerals (Development and Regulation) Act, 1957 (

67 of 1957

);]

;

(b)

"agent", when used in relation to a mine, means any person whether appointed as such or not, who acts as the representative of the owner in respect of the management of the mine or any part thereof;

(c)

["authorised officer" means any officer of the Indian Bureau of Mines duly authorised in writing by the Controller General, Indian Bureau of Mines or an officer authorised in this behalf by the State Government to perform the functions under these rules;]

[Substituted by Notification No. G.S.R. 407(E), dated 20.5.2015 (w.e.f.)]

(d)

"beneficiation" means processing of minerals or ores for the purpose of-

(i)

regulating the size of a desired produce;

(ii)

removing unwanted constituents; and

(iii)

improving quality, purity or assay grade of desired product;

(e)

"boring" or "drilling" means the penetration of alluvial material, rocks or formations by holes for obtaining geological information, and for drawing samples therefrom;

(f)

"Chief Controller of Mines" means the Chief Controller of Mines of the Indian Bureau of Mines;

(g)

"Controller General" means the Controller General of the Indian Bureau of Mines;

(h)

"Controller of Mines" means the Controller of Mines of the Indian Bureau of Mines;

(i)

"development" means the driving of an opening to, or in an ore-body or seam or removing overburden or unproductive or waste materials as preparatory to mining or stopping;

(j)

"environment" and "environmental pollution", shall have the same meanings, assigned respectively to these terms in Environment (Protection) Act, 1986 (

29 of 1986

);

(jj)

[final mine closure plan" means a plan for the purpose of decommissioning, reclamation and rehabilitation in the mine or part thereof after cessation of mining and mineral processing operations that has been prepared in the manner specified in the standard format and guidelines issued by the Indian Bureau of Mines;

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

(jjj)

"financial assurance" means the sureties furnished by the leaseholder to the competent authority so as to indemnify the authorities against the reclamation and rehabilitation cost;]

(k)

"Form" means a Form set forth in Schedule to these rules;

(l)

"geologist" means a person appointed in writing by the owner or agent to perform the duties of a geologist under these rules;

(m)

"manager" when used in relation to a mine, means any person appointed by the owner or agent and includes the owner or the agent if he appoints himself to be such manager, under section 17 of the Mines Act, 1952 (

35 of 1952

);

(mm)

["mine closure" means steps taken for reclamation, rehabilitation measures taken in respect of a mine or part thereof commencing from cessation of mining or processing operations in a mine or part thereof;]

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

(n)

"mining engineer" means a person appointed in writing by the owner or agent to perform the duties of a mining engineer under these rules;

(o)

"mining plan" means a mining plan prepared under section 5 of the Act and the rules made thereunder;

(oo)

["progressive mine closure plan" means a progressive plan, for the purpose of providing protective, reclamation and rehabilitation measures in a mine or part thereof that has been prepared in the manner specified in the standard format and guidelines issued by Indian Bureau of Mines;]

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

(p)

"prospect" means an area where prospecting operations for minerals are being carried out and includes any area held under prospecting license;

(q)

"recognised person" means a person granted recognition by the competent authority to prepare mining plan;

(r)

"Regional Controller" means the Regional Controller of Mines of the Indian Bureau of Mines;

(s)

"shaft" means a vertical or inclined way or opening leading from the surface to workings below ground or from one part of the workings below ground to another, and includes an incline;

(t)

"stopping" means making any underground excavation other than development working made for the purpose of winning ores or minerals and includes extraction or splitting or reduction of pillars or blocks of minerals;

(tt)

["temporary discontinuance" means the planned or unplanned suspension of mining operations in a mine or part thereof and where the operations are likely to be resumed after certain time;]

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

(u)

"year" means the twelve months period beginning from the first day of April and ending on the thirty-first day of March of the following year;

(v)

all other words and expressions used in these rules but not defined shall have the meanings respectively assigned to them in the Act.

[Chapter I-A]

[Inserted by G.S.R. 55(E), dated 17.1.2000.]

Reconnaissance Operations

3.

-A. Scheme of reconnaissance.

- Every holder of a reconnaissance permit shall submit to the Controller General and the Regional Controller or the authorised officer within a period of sixty days from the date of execution of the reconnaissance permit, a scheme of reconnaissance operations indicating the manner in which he proposes to carry out reconnaissance operations in the area covered by the permit and in particular-

(a)

particulars of the area such as aerial extent, boundaries;

(b)

the scale of the plan and the area of geological mapping; and

(c)

the particulars of the machines and instruments to be used.

3.

-B. Modification of scheme of reconnaissance.

(1)

A reconnaissance scheme prepared and submitted under rule 3-A may be modified at any time on geological considerations by the holder of a reconnaissance permit during continuance of the reconnaissance permit.

(2)

Any modification carried out under sub-rule (1) shall be intimated to the Controller General and the Regional Controller or the authorised officer by the holder of reconnaissance permit within a period of fifteen days.

3.

-C. Reconnaissance operations to be carried out in accordance with the scheme of reconnaissance.

- Every holder of the reconnaissance permit shall carry out the reconnaissance operations in accordance with the scheme of reconnaissance submitted under rule 3-A or with such modifications, if any, as intimated under rule 3-B, or as directed by the Controller General or Regional Controller or the authorised officer.

3.

-D. Intimation about reconnaissance operations.

- Every holder of a reconnaissance permit shall send to the Controller General, Controller of Mines and the Regional Controller, an intimation in Form AA of the commencement of reconnaissance operations so as to reach them within a period of fifteen days of such commencement.

3.

-E. Submission of reports about reconnaissance operations.

- Every holder of a reconnaissance permit shall send to the Controller General, Controller of Mines and the Regional Controller any yearly report in Form BB alongwith all the aerial photo geological, geophysical, geochemical and such other data collected by him as per the conditions stipulated in the reconnaissance permit so as to reach them within thirty days after expiry of every year from the date of execution of the reconnaissance permit or the expiry of the reconnaissance permit or the abandonment of the reconnaissance permit or termination of reconnaissance permit, whichever is earlier.

Chapter II

Prospecting Operations

4.

Scheme of prospecting.

(1)

Every holder of a prospecting license shall submit to [the Controller General and the Regional Controller or the authorised officer]

[Substituted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

within a period of 60 days from the date of execution of the prospecting license, a scheme of prospecting indicating the manner in which he proposes to carry out the prospecting operations, in the area covered by the license and in particular-

(a)

particulars of the area;

(b)

the scale of the plan and the area of geological mapping;

(c)

the number of pits, trenches, and bore holes which he proposes to put in the area;

(d)

the particulars of the machines to be used;

(e)

the details of exploratory mining [if any, proposed]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

to be undertaken;

(f)

the number of samples proposed to be drawn and analysed;

(g)

the beneficiation studies proposed to be undertaken; and

(h)

any other matter relevant for the preparation of a scheme of prospecting, as directed by the Controller General or the authorised officer from time to time by a general or specific order.

(2)

Notwithstanding anything contained in sub-rule (1) a scheme of prospecting shall include-

(a)

baseline information of prevailing environmental conditions before the beginning of the prospecting operations;

(b)

[steps proposed to be taken for protection of environment which will include]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

prevention and control of air and water pollution, progressive reclamation and rehabilitation of the land disturbed by the prospecting operations, a scheme for the plantation of trees, and such other measures, as may be directed from time to time by the Controller General or the authorised officer for minimising the adverse effect of prospecting operations on the environment.

(3)

The prospecting scheme under sub-rule (1) shall be prepared by a recognised person or a geologist or a mining engineer employed under clause (a) of sub-rule (1) of rule 42.

5.

Modification of scheme of prospecting.

(1)

A prospecting scheme prepared and submitted under rule 4 may be modified at any time on geological considerations by the holder of a prospecting license during continuance of the prospecting license.

(2)

Any modification carried out under sub-rule (1) shall be intimated to [the Controller General and the Regional Controller or the authorised officer]

[Substituted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

by the holder of a prospecting license within a period of fifteen days.

6.

Prospecting operation to be carried out in accordance with scheme of prospecting.

- Every holder of a prospecting license shall carry out the prospecting operations in accordance with the scheme of prospecting submitted under rule 4 or with such modifications, if any, as intimated under rule 5 or as directed by the Controller General or the authorised officer.

7.

Intimation about prospecting operations.

- Every holder of a prospecting license shall send to the Controller General, Controller of Mines and the Regional Controller, an intimation in Form A of the commencement of prospecting operations so as to reach them within a period of fifteen days of such commencement.

8.

Report of prospecting operations.

(1)

Every holder of a prospecting license shall submit to the Controller General, Controller of Mines and the Regional Controller-

[* * *]

[Clause (a) omitted by G.S.R. 580(E), dated 4.8.1995.]

(b)

an yearly report in [Form B]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

so as to reach them within thirty days after the expiry of [twelve months]

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

from the date of execution of the prospecting license or the expiry of the prospecting license whichever is earlier:

Provided that in case the prospecting operations are abandoned, the report in [Form B]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

shall be submitted within a period of thirty days from the date of such abandonment:

Provided further that in case the prospecting operations are continued for a period exceeding one year, the report in [Form B]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

shall be submitted once every year and a final report in [Form B]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

within a period of three months after the completion of the prospecting operations or the expiry of the prospecting license, whichever is earlier.

(2)

Where prospecting operations are carried out by the authorities specified in the second proviso to sub-section (1) of section 4 of the Act without a prospecting license, such authority shall submit the annual report in [Form B]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

to the Controller General in respect of each area where prospecting operations have been undertaken by them:

Provided that this sub-rule shall not apply in a case where field operation consists of only geological mapping or geo-physical or geo-chemical investigations.

Chapter III

Mining Operations

9.

Mining plan.

(1)

No person shall commence mining operations in any area except in accordance with a mining plan approved under clause (b) of sub-section (2) of section 5 of the Act.

(2)

The Controller General or the authorised officer [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

may require the holder of a mining lease to make such modifications in the mining plan referred to in sub-rule (1) or impose such conditions as he may consider necessary by an order in writing if such modifications or imposition of conditions are considered necessary-

(a)

in the light of the experience of operation of mining plan;

(b)

in view of the change in the technological development.

10.

Modification of mining plan.

(1)

A holder of a mining lease desirous of seeking modifications in the approved mining plan as are considered expedient, in the interest of safe and scientific mining, conservation of minerals, or for the protection of environment, shall apply to the Controller General, [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

setting forth the intended modifications and explaining the reasons for such modifications.

(2)

The Controller General or the authorised officer [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

may approve the modifications under sub-rule (1) [or approve with such alterations as he may consider expedient within a period of ninety days]

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

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11.

Mining plan to be submitted by the existing lessee.

(1)

Where mining operations have been undertaken before the commencement of these rules without an approved mining plan, the holder of such mining lease, shall submit a mining plan within a period of one year from the date of commencement of these rules, [to the Regional Controller or the authorised officer or the officer authorised in this behalf by the State Government, as the case may be, for approval]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

.

(2)

If a holder of a mining lease has not been able to submit the mining plan within the specified time for reasons beyond his control, he may apply for extension of time giving reasons to the following authorities:-

(a)

to the Regional Controller for extension of time up to six months;

(b)

to the Controller of Mines for extension of time exceeding six months but not exceeding one year;

(c)

to the Chief Controller of Mines for extension of time beyond one year;

(d)

[to the officer authorised in this behalf by the State Government in respect of mining plan approved by the State Government.]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(3)

[The Regional Controller, Controller of Mines, the Chief Controller of Mines or the authorised officer or the officer authorised in this behalf by the State Government, as the case may be, on receiving an application made under sub-rule (2) may, on being satisfied, extend the period for submission of the mining plan for the period mentioned in clause (a), (b), (c) or (d) of the said sub-rule.]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(4)

The Regional Controller [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

may approve the plan as submitted by the lessee under sub-rule (1) or may require modifications to be carried out in the plan and the lessee shall carry out such modifications and resubmit the modified plan for [* * *]

[Certain words omitted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

approval.

(5)

[The Regional Controller or the officer authorised in this behalf by the State Government, as the case may be, shall, within a period of 90 days from the date of receipt of the mining plan or the modified mining plan, convey, approval for disapproval to the applicant and in case of disapproval shall also convey the reasons for disapproving the said mining plan or the modified mining plan.]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(6)

If no decision is conveyed within the period stipulated under sub-rule (5), the mining plan or the modified mining plan, as the case may be, shall be deemed to have been provisionally approved and such approval shall be subject to the final decision whenever communicated.

(7)

The mining plan submitted under sub-rule (1) shall be prepared by a recognised person.

12.

Review of mining plan.

- [* * *]

[Omitted by G.S.R. 55(E), dated 17th January, 2000.]

(2)

The owner, agent, mining engineer or manager of every mine shall review the mining plan as prescribed under sub-rule (1) and submit a scheme of mining for the next five years of the lease to the Regional Controller [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

for approval.

(3)

The scheme of mining shall be submitted to the Regional Controller [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

at least one hundred twenty days before the expiry of the five years' period, for which it was approved on the last occasion.

(4)

The Regional Controller or the authorised officer [or the officer authorised in this behalf by the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

shall convey his approval or refusal to the scheme of mining within ninety days of the date of its receipt.

(5)

If approval or refusal of the scheme of mining is not conveyed to the holder of the mining lease within the stipulated period the scheme of mining shall be deemed to have been provisionally approved and such approval shall be subject to final decision whenever communicated.

(6)

The provisions of rules 9, 10 and 13 shall apply to the scheme of mining in the same way as they are applicable to the mining plan.

(7)

Every scheme of mining submitted under sub-rule (2) shall be prepared by a recognised person or a person employed under clause (b) of sub-rule (1) of rule 42.

13.

Mining operations to be in accordance with mining plans.

(1)

Every holder of a mining lease shall carry out mining operations in accordance with the approved mining plan with such conditions as may have been prescribed under sub-rule (2) of rule 9 or with such modifications, if any, as permitted under rule 10 or the mining plan or scheme approved under rule 11 or 12, as the case may be.

(2)

If the mining operations are not carried out in accordance with the mining plan as referred to under sub-rule (1), the Regional Controller or the authorised officer may order suspension of all or any of the mining operations and permit continuance of only such operations as may be necessary to restore the conditions in the mine as envisaged under the said mining plan.

14.

Prospecting and mining operations.

- The prospecting and mining operations shall be carried out in such a manner so as to ensure systematic development of mineral deposits, conservation of minerals and protection of environment.

15.

Open-cast working.

(1)

In open-cast workings the benches formed shall be so arranged that the benches in ore/mineral and overburden are separate so as to avoid mixing of waste with the ore/minerals.

(2)

The benches in overburden shall be kept sufficiently in advance so that their workings do not interfere with the working of ore/minerals.

(3)

Orientation of the workings and sequence of mining operations shall be such that different grades of ore/minerals can be obtained simultaneously for blending with a view to achieve optimum recovery of ore/minerals from the deposit.

16. Separate stacking of non-saleable minerals.

(1)

The overburden and waste material obtained during mining operations shall not be allowed to be mixed with non-saleable or sub-grade minerals/ores. They shall be dumped and stacked separately on the ground earmarked for the purpose.

(2)

The ground selected for dumping of overburden, waste material, the sub-grade or non-saleable ores/minerals, shall be away from working pit. It shall be proved for absence or presence of underlying mineral deposits before it is brought into use for dumping.

(3)

Before starting mining operations, the ultimate size of the pit shall be determined and the dumping ground shall be so selected that the dumping is not carried out within the limits of the ultimate size of the pit except in cases where concurrent back filling is proposed.

17.

Underground mining operations.

(1)

Mining operations in underground shall be carried out in such a way so as to achieve optimum ore/mineral recovery.

(2)

The method of underground development of the deposit shall be planned in accordance with the method of stopping which shall be selected with due consideration of the geology of the deposit and geo-mechanical properties of the ore and the adjoining rocks.

(3)

The size of development openings, size of blocks and pillars shall be such that the workings remain stable during the development and stopping stages and between such stages.

(4)

The stopping practices shall be such as to cause minimum disturbance to the surface.

(5)

In case of a doubt as to the optimum ore/mineral recovery under sub-rule (1), or the method of underground development under sub-rule (2), or size of openings, blocks or pillars under sub-rule (3) or the stopping practices under sub-rule (4), it shall be referred to the Chief Controller of Mines for decision.

(6)

The Chief Controller of Mines may order such investigations and tests to be carried out as are considered necessary before arriving at a decision on any matter referred to him under sub-rule (5).

18.

Sub-grade minerals to be brought to surface.

(1)

All the sub-grade ore/minerals wherever obtained in underground workings shall be brought to the surface instead of leaving or packing them in underground.

(2)

As far as practicable the complete width of the ore/mineral body shall be worked:

Provided that the Chief Controller of Mines may permit in writing leaving of certain portions in underground if it is necessary for the support or protection to the mine workings.

19.

Prohibition of reduction of blocks.

- All the blocks formed in underground workings shall be regular in size and shape. Once a block is formed it shall not be split or reduced in size until the stage of commencement of stopping:

Provided that the Chief Controller of Mines may permit reduction in the size of blocks on an application in writing made by the owner, agent, mining engineer or manager giving reasons for doing the same.

20.

Beneficiation studies to be carried out.

(1)

If the Controller General or the authorised officer, having due regard to the nature of mining operations and grade of ore/mineral is of the view that the sub-grade ore/mineral contains certain recoverable product, he may direct the owner, agent, mining engineer or manager of the mine to get the beneficiation investigations carried out.

(2)

The report of the beneficiation investigation so carried out shall be submitted to the Controller General or the authorised

officer as the case may be immediately after the investigation is over.

(3)

In a mine having a beneficiation plant, feed products and tailings shall be regularly sampled and analysed at suitable intervals and records of the same maintained in bound paged book:

Provided that the Controller General or the authorised officer may require the sampling and analysis to be done at any other interval than in practice.

21.

Machinery and plant.

(1)

Where heavy earth moving is used in mines, the owner, agent, mining engineer or manager of the mine shall maintain Log Books in respect of each machine showing date-wise account of hours worked, hours not worked, reasons for non-working, consumption of fuel/energy and lubricants and output of the machine during the corresponding working hours. The summary of operation of each machine shall be recorded in the Log Book at the end of each month bringing out the percentage availability and percentage utilisation of the machine, average hourly performance and average fuel/energy consumption per hour.

(2)

Each page of the Log Book shall be numbered and the summary shall be signed and dated by the mining engineer.

(3)

The Log Book shall be made available to the authorised officer on demand.

22.

Notice for opening of a mine.

(1)

The owner, agent, mining engineer or manager of every mine shall send to the Controller General, Controller of Mines and the Regional Controller an intimation in [Form C]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

of the opening of a mine so as to reach them within fifteen days of such opening.

(2)

The intimation in [Form C]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

sent to the Regional Controller under sub-rule (1) shall be accompanied with a copy of mining plan approved under clause (b) of sub-section (2) of section 5 of the Act [only when the mine is being opened after a lapse of 5 years period from the date of approval of mining plan]

[Inserted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

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23.

Abandonment of mines.

(1)

The owner, agent, mining engineer, or manager of every mine shall not abandon a mine or a part of mine during the subsistence of the lease except with prior permission in writing of the Controller General or the authorised officer.

(2)

The owner, agent, mining engineer, or manager of every mine shall send to the Controller General, Controller of Mines and the Regional Controller under registered cover, a notice in [Form D]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

of his intention to abandon a mine or a part of a mine so as to reach them at least ninety days before the intended date of such abandonment.

(3)

Such a notice shall be accompanied by plans and sections on a scale of not less than 1 cm - 10 metres setting forth accurately the work done in the mine upto the time of submission of the notice including the measures envisaged for the protection of the abandoned mine or part thereof, the approaches thereto, and the environment:-

Provided that the Controller General may require the plans and sections to be prepared on any other suitable scale.

(4)

The Controller General or the authorised officer may an order in writing made before the proposed date of abandonment, prohibit abandonment or allow it to be done with such conditions as he may specify in the order.

(5)

[The leaseholder shall not abandon a mine or part thereof unless a final mine closure plan duly approved by the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, is implemented. For this purpose, the lessee shall be required to obtain a certificate from the Regional Controller of Mines or the officer authorised by the State Government in this behalf to the effect that protective, reclamation and rehabilitation work in accordance with the final mine closure plan or with such modifications as approved by the competent authority, have been carried out before abandonment of mine.]

[Substituted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003). Earlier, it was substituted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

[23-A. Mine closure plan.

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

- Every mine shall have mine closure plan, which shall be of two types:-

(i)

a progressive mine closure plan; and

(ii)

a final mine closure plan.

23.

-B. Submission of progressive mine closure plan.

(1)

The owner, agent, manager or mining engineer shall, in case of fresh grant or renewal of mining lease, submit a progressive mine closure plan as a component of mining plan to the Regional Controller of Mines or officer authorised by the State Government in this behalf, as the case may be.

(2)

The owner, agent, manager or mining engineer shall, in case of existing mining lease submit a progressive mine closure plan to the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, for approval on][or before 31st December, 2004.]

[Substituted by G.S.R. 963(E), dated 23.12.2003 (w.e.f. 24.12.2003).]

(3)

[The owner, agent, manager or mining engineer shall review the progressive mine closure plan every five years from the date of its approval in case of existing mine or from the date of opening of the mine in case of fresh grant or from the date of renewal of mining lease, as the case may be, and shall submit to the Regional Controller of Mines or officer authorised by the State Government in this behalf, as the case may be, for its approval.

(4)

The Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, shall convey his approval or refusal of the progressive mine closure plan within ninety days of the date of its receipt.

(5)

If approval or refusal of the progressive mine closure plan is not conveyed to the owner, agent, manager or mining engineer of the mining lease within the period as specified in sub-rule (4), the progressive mine closure plan shall be deemed to have been provisionally approved, and such approval shall be subject to final decision whenever communicated.

23.

-C. Submission of final mine closure plan.

(1)

The owner, agent, manager or mining engineer shall submit a final mine closure plan to Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, for approval one year prior to the proposed closure of the mine.

(2)

The Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, shall convey his approval or refusal of the final mine closure plan within ninety days of the date of its receipt to the

owner, agent, manager or mining engineer.

(3)

If approval or refusal of the final mine closure plan is not conveyed to the owner, agent, manager or mining engineer of the mining lease within the period as specified in sub-rule (2), the final mine closure plan shall be deemed to have been provisionally approved, and such approval shall be subject to final decision whenever communicated.

23.

-D. The modification of mine closure plan.

(1)

The holder of a mining lease desirous of seeking modifications in the approved mine closure plan, shall submit to the Controller General or the officer authorised by the State Government in this behalf, as the case may be, for approval setting forth the intended modifications and explaining the reasons for such modifications.

(2)

The Controller General or the officer authorised by the State Government in this behalf, as the case may be, may approve the modifications as submitted under clause (1) or approve with such alterations as he may consider expedient.

23.

-E. Responsibility of the holder of mining lease.

(1)

The owner, agent, manager or mining engineer shall have the responsibility to ensure that the protective measures contained in the mine closure plan referred to in this rule including reclamation and rehabilitation works have been carried out in accordance with the approved mine closure plan or with such modifications as approved by the Regional Controller or the officer authorised by the State Government in this behalf under this rule.

(2)

The owner, agent, manager or mining engineer shall submit to the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, a yearly report before 1st July of every year setting forth the extent of protective and rehabilitative works carried out as envisaged in the approved mine closure plan, and if there is any deviation, reasons thereof.

23.

-F. Financial assurance.

(1)

Financial assurance, has to be furnished by every leaseholder. The amount of financial assurance shall be Rupees Twenty-five thousand for A category mines and Rupees Fifteen thousand for B category mines, per hectare of the mining lease area put to use for mining and allied activities. However, the minimum amount of financial assurance to be furnished in any of the forms referred to in clause (2) shall be Rupees Two Lakh for A category mines and Rupees One lakh for B category mines:

Provided that a leaseholder shall be required to enhance the amount of financial assurance with the increase in the area of mining and allied activities:

Provided further that where a lease holder undertakes reclamation and rehabilitation measures as part of the progressive closure of mine, the amount so spent shall be reckoned as sum of the financial assurance already spent by the leaseholder and the total amount of financial assurance, to be furnished by the lessee, shall be reduced to that extent.

(2)

The financial assurance shall be submitted in one of the following forms to Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, or any amendment to it:

(a)

Letter of Credit from any Scheduled Bank;

(b)

Performance or surety bond;

(c)

Trust fund build up through annual contributions from the revenue generated by mine and based on expected amount sum required for abandonment of mine; or

(d)

Any other form of security or any other guarantees acceptable to the authority.

(3)

The lessee shall submit the financial assurance to the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, before executing the mining lease deeds. In case of an exiting mining lease, the lessee shall submit the financial assurance alongwith the progressive mine closure plan.

(4)

Release of financial assurance shall be effective upon the notice given by the lessee for the satisfactory compliance of the provisions contained in the mine closure plan and certified by the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be.

(5)

If the Regional Controller of Mines or the officer authorised by the State Government in this behalf, has reasonable grounds for believing that the protective, reclamation and rehabilitation measures as envisaged in the approved mine closure plan in respect of which financial assurance was given has not been or will not be carried out in accordance with the mine closure plan, either full or partially, the Regional Controller of Mines or the officer authorised by the State Government in this behalf, shall give the lessee a written notice of his intention to issue the orders for forfeiting the sum assured at least thirty days prior to the date of the order to be issued.

(6)

Within the thirty days of the receipt of notice referred to in sub-rule (5), if no satisfactory reply has been received in writing from the lessee, the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, shall pass an order for forfeiting the surety amount and a copy of such order shall be endorsed to the concerned State Government.

(7)

Upon the issuance of order by the Regional Controller of Mines or the officer authorised by the State Government in this behalf, as the case may be, the concerned State Government may realise any letter of credit or bond or any other surety, guarantee provided or obtained as financial assurance for the purpose of performance of protective, reclamation, rehabilitation measures and shall carry out those measures, or appoint an agent to do so.]

[Inserted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

24.

[Notice of temporary discontinuance of work in mines and obligations of the lease holders.

[Substituted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

(1)

The owner, agent, mining engineer or manager of every mine shall send to Controller General, Controller of Mines and the Regional Controller of Mines a notice in Form D-1 when the mining or mineral processing operations in the mine or part thereof are discontinued for a period exceeding ninety days so as to reach them within one hundred and five days from the date of such temporary discontinuance.

(2)

Where the discontinuance takes place as a result of the occurrence of natural calamity beyond the control of the owner, agent, mining engineer or manager of a mine, or in compliance with any order or directions issued by any statutory authority established under any law in force or any Tribunal or a Court, a telegraphic intimation shall be sent to the Controller General and the Regional Controller within a period of twenty-four hours of such discontinuance, and a notice of discontinuance, under this sub-rule, shall be submitted to the Controller General, Controller of Mines and the Regional Controller within a period of fifteen days of such discontinuance in Form D-1.

(3)

During the temporary discontinuation of mine or part thereof, it shall be the responsibility of the owner, agent, manager or mining engineer to comply with the reasonable prohibitive measures to restrict access for unauthorised entry, provide protective measures to potentially dangerous sources of electrical and mechanical installations, the mine opening or workings and all other structures. It shall be ensured that all contaminated effluents are controlled and all physical, chemical, biological monitoring programs have been continued. It shall also be ensured that all rock piles, overburden piles and stock piles and tailings and other water impoundment structure have been maintained in stable and safe conditions.]

25.

Intimation of reopening of a mine.

- The owner, agent, mining engineer or manager of every mine shall send to the Controller General, Controller of Mines and the Regional Controller an intimation in [Form C]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

of reopening of a mine after temporary discontinuance, so as to reach them within fifteen days from the date of such reopening.

26.

Stopping of vein, etc.

(1)

No stopping shall be commenced, conducted or carried out except with prior permission in writing of the Controller General, or the authorised officer.

(2)

The owner, agent, mining engineer or manager of every mine shall send to the Controller General, Controller of Mines and the Regional Controller under registered cover a notice in [Form E]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

intimating his intention to commence the stopping of any vein, lode, reef or mineral deposit, so as to reach them at least sixty days before the date of commencement of such operations.

(3)

Such notice shall be accompanied by plans and sections on a scale of not less than 1 cm=10 metres showing the details of the block proposed to be stopped, the manner of stopping, the mineralised and barren zones indicating estimated percentage recovery from stopes:

Provided that the Controller General [or the Chief Controller of Mines, as the case may be, may,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

by an order in writing and subject to such conditions as he may specify therein, permit or require the plans and sections to be prepared on any other suitable scale.

(4)

The Controller General or the authorised officer may by an order in writing made before the proposed date of commencement of stopping operations prohibit the stopping or allow it to be done under such conditions as may be specified in the order.

Chapter IV

Plans And Sections

27.

General requirements about plans and sections.

(1)

Every plan or section prepared or submitted in accordance with the provisions of these rules shall-

(a)

show the name of the mine and of the owner and the purpose for which the plan or section is prepared;

(b)

show the true north or the magnetic meridian and the date of the latter;

(c)

show a scale of the plan at least twenty-five centimetres long and suitably sub-divided;

(d)

unless otherwise provided, be on a scale having a representative factor of-

(i)

200:1 in case of mica mines and other mines having small-scale workings below ground;

(ii)

2000:1 in case of mines having large open cast working and also in case of surface plans of large leasehold areas; and

(iii)

1000:1 in other cases:

Provided that the Chief Controller of Mines may, by an order in writing and subject to such conditions as he may specify therein, permit or require the plans to be prepared on any other suitable scale;

(e)

be properly inked in on a durable paper or on tracing cloth or other suitable material and be kept in good condition.

(2)

The conventions prescribed under the Metalliferous Mines Regulations, 1961, shall be used in preparing all plans and sections required under these rules.

(3)

The plans and sections shall be accurate within such limits of error as the Controller General may specify by a general or special order.

(4)

[The plans and sections required under these rules shall be maintained up to date within three months in case of category "A" mines as referred to in clause (b) of sub-rule (1) of rule 42, and within twelve months in the case of any other mine.]

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

28.

Types of plans and sections.

(1)

The owner, agent, mining engineer or manager of every mine shall keep the following plans and sections:-

(a)

a surface plan showing every surface feature within the mining lease boundaries such as building, telephone, telegraph or power transmission line, water-main, tramline, railway, road, river, water-course, reservoir, tank, bore-hole, shaft and incline opening, open-cast working, dumps and dumping ground, the waste land, forest, sanctuaries, agricultural land and grazing land and subsidence on the surface;

(b)

a surface geological plan of the area of leasehold, on a scale specified or approved by the Controller General by a general or special order in writing showing-

(i)

all the lithological units exposed in the area, in the pits, trenches and in any other openings made for prospecting and mining operations showing contact between lithological units;

(ii)

structural details like strike, dip, fold, fault, plunge of ore body;

(iii)

location of prospecting pits, trenches, boreholes and any other openings made for prospecting and/or mining operations;

(iv)

existing mine workings dumps;

(c)

a transverse section or sections of the workings through the shaft or shafts and main adits indicating clearly the strike and dip of the vein, lode, reef, or mineral bed or deposit at different points, and such sections of the strata sunk or driven through in the mine or proved by boring, as may be available;

(d)

a longitudinal mine section or sections showing a vertical projection of the mine working including outlines of all stopped out areas, where a reef, vein, lode or mineral bed/deposit or part thereof has dip exceeding thirty degrees from the horizontal plane:

Provided that, with the permission in writing of the Controller General [or the Chief Controller of Mines, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

and subject to such conditions as he may specify therein, such sections may be prepared in relation to any other suitable plan;

(e)

an underground plan showing-

(i)

the position of the workings of the mine below ground;

(ii)

every boreholes and shaft (with depth), drive, cross-cut, winze, raise, excavation (stopped ground) and every tunnel and air passage connected therewith;

(iii)

every pillar or block of mineral left for the support of any structure on the surface; and underground magazines, if any;

(iv)

the general strike of the veins, lodes, reefs and mineral beds or deposits;

(v)

the position of every dyke, fault and other geological disturbance with the amount and direction of throw.

(2)

Whenever the underground plan referred to in clause (e) of sub-rule (1) is brought up-to-date, the then position of the workings shall be shown by a dotted line drawn through the ends of the workings, and such dotted line shall be marked with the date of the last survey:

Provided that the Controller General [or the Chief Controller of Mines, as the case may be, may,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

by an order in writing and subject to such conditions as he may specify therein, approve any other method of showing the up-to-date position of the working of the mine.

(3)

Where different reefs, lodes, veins or mineral beds or deposits overlies or run parallel to one another, the workings of each reef, lode, vein or mineral bed or deposit shall be shown on separate plan and/or longitudinal section or sections; however, if two reefs, lodes, veins, or mineral beds or deposits are so situated in relation to each other that the parting between workings made therein is less than ten metres at any place, such workings shall also be shown on a combined plan and/or longitudinal section, as the case may be, in different colours.

(4)

The plans kept under clauses (a) and (e) of sub-rule (1) shall also show the settled boundary of the mining lease, or where the boundary is in dispute, the boundaries claimed by the owner of the mine and by the owners of the mines adjacent to the disputed boundary:

Provided that where it is not possible to show the complete boundary of leasehold on the same plan an additional key plan on any other suitable scale showing such boundaries and the outline of the workings shall also be maintained.

(5)

The owner, agent, mining engineer or manager of every mine shall keep the following:-

(a)

A key plan on a scale of 1:63,000 or 1:50,000 incorporating the following:-

(i)

[an administrative surface map showing the boundary of the mining lease, and the adjoining area lying preferably within five kilometres thereof;]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(ii)

contours at not more than [twenty]

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

metres intervals;

(iii)

natural drainage system such as rivers, streams, nalahs, water reservoirs, ponds, lakes, irrigation dams and canals;

(iv)

roadways and railways;

(v)

places of historical and archaeological importance, monuments, places of worship, pilgrimage and of tourist interest;

(vi)

forests with tree density, sanctuaries, wastelands, agricultural lands, grazing lands;

(vii)

boundaries of all villages and towns with their population;

(viii)

predominant wind direction;

(ix)

any other relevant features:

[Provided that where topographical map is classified as restricted, the particulars referred to in items (i) to (ix) shall be incorporated in the key plan to the extent available in the administrative]

[Inserted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

[surface]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

[maps.]

[Inserted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

(b)

An environment plan of the area of mining lease inclusive of the adjoining area within five hundred metres of the boundary of a lease area on 1:5000 scale incorporating the following:-

(i)

[an administrative surface map showing the boundary of the mining lease]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

;

(ii)

contour lines at five metres intervals;

(iii)

all features indicated in sub-clauses (iii) to (ix) of clause (a) above;

(iv)

area occupied by mine workings area deforested, area covered by dump with the height of the dump, processing plant, surface building, workshop, mining township;

(v)

area reclaimed and area afforested, location of protective barriers, check dams erected to contain solid and liquid effluents generated by prospecting, mining, beneficiation or metallurgical operations carried out in the mine;

(vi)

all pumping stations and the courses of discharge of mine water:

[Provided that the particulars with regard to items (ii), (iv) and (v) shall be applicable only upto sixty metres beyond the boundary of lease areas.]

[Inserted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

(6)

(a)

The Controller General may, by an order in writing, require such additional details to be shown on the plans and sections required to be kept under these rules or the preparation and maintenance of such plans and sections showing such details and on such scale and within such time as he may specify in the order.

(b)

The Controller General or the authorised officer may, by an order in writing, require the owner, agent, mining engineer or manager of a mine to submit to him within such time, such plans and sections, or tracings thereof, as he may specify in the order.

29.

Copies of plans and sections to be submitted.

- The owner, agent mining engineer or manager of every mine shall, [on or before the 30th day of June]

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

every year submit to the Controller General, Controller of Mines and the Regional Controller a copy of the plans and sections maintained under rule 28.

30.

Preparation of plans.

(1)

All plans, sections and tracings or copies thereof kept at the mine shall be serially numbered or suitably indexed.

(2)

Every plan, section or part thereof prepared under these rules shall carry thereon a certificate for its correctness and shall be signed by the mining engineer with date:

Provided that the geological plans and sections shall be certified and signed by the geologist employed under rule 42.

(3)

Every copy of a plan and section or part thereof submitted or maintained under these rules shall bear a reference to the original plan or section from which it was copied and shall be certified thereon by the owner, agent, mining engineer or manager to be a true copy of the original plan or section.

Chapter V

Environment

31.

Protection of environment.

- Every holder of a prospecting license or a mining lease shall take all possible precautions for the protection of environment and control of pollution while conducting prospecting, mining, beneficiation or metallurgical operations in the area.

32.

[Removal and utilisation of top soil.

[Substituted by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

(1)

Every holder of a prospecting license or a mining lease shall, wherever top soil exists and is to be excavated for prospecting or mining operations, remove it separately.

(2)

The top soil so removed shall be utilised for restoration or rehabilitation of the land which is no longer required for prospecting or mining operations or for stabilising or landscaping the external dumps.

(3)

Whenever the top soil cannot be utilised concurrently, it shall be stored separately for future use.]

33.

Storage of overburden, waste rock, etc.

(1)

Every holder of a prospecting license or a mining lease shall take steps so that the overburden, waste rock, rejects and fines generated during prospecting and mining operations or tailings, slimes and fines produced during sizing, sorting and beneficiation or metallurgical operations shall be stored in separate dumps.

(2)

The dumps shall be properly secured to prevent escape of material therefrom in harmful quantities which may cause degradation of environment and to prevent causation of floods.

(3)

The site for dumps, tailings or slimes shall be selected as far as possible on impervious grounds to ensure minimum leaching effects due to precipitations.

(4)

Wherever possible, the waste rock, overburden, etc., shall be back-filled into the mine excavations with a view to restoring the land to its original use as far as possible.

(5)

Wherever back-filling of waste rock in the area excavated during mining operations is not feasible, the waste dumps shall be suitably terraced and stabilised through vegetation or otherwise.

(6)

The fines, rejects or tailings from mine, beneficiation or metallurgical plants shall be deposited and disposed in a specially prepared tailings disposal area such that they are not allowed to flow away and cause land degradation or damage to agricultural field, pollution of surface water bodies and ground water or cause floods.

34.

Reclamation and rehabilitation of lands.

- Every holder of prospecting license or mining lease shall undertake the phased restoration, reclamation and rehabilitation of lands affected by prospecting or mining operations and shall complete this work before the conclusion of such operations and the abandonment of prospect or mine.

35.

Precaution against ground vibrations.

- Whenever any damage to public buildings or monuments is apprehended due to their proximity to the mining lease area, scientific investigations shall be carried out by the holder of mining lease so as to keep the ground vibrations caused by blasting operations within safe limit.

36.

Control of surface subsidence.

- Stopping in underground mines shall be so carried out as to keep surface subsidence under control.

37.

Precaution against air pollution.

- Air pollution due to fines, dust, smoke or gaseous emissions during prospecting, mining, beneficiation or metallurgical operations and related activities shall be controlled and kept within "permissible limits" specified under various environmental laws of the country including the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

) and the Environment (Protection) Act, 1986 (

29 of 1986

) by the holder of prospecting license or a mining lease.

38.

Discharge of toxic liquid.

- Every holder of prospecting license or a mining lease shall take all possible precautions to prevent or reduce the discharge of toxic and objectionable liquid effluents from mine, workshop, beneficiation or metallurgical plants, tailing ponds, into surface water bodies, ground water aquifer and usable lands, to a minimum. These effluents shall be suitably treated, if required, to conform to the standards laid down in this regard.

39.

Precaution against noise.

- Noise arising out of prospecting, mining beneficiation or metallurgical operations shall be abated or controlled by the holder of prospecting license or a mining lease at the source so as to keep it within the permissible limit.

40.

Permissible limits and standards.

- The standards and permissible limits of all pollutants, toxins and noise referred to in rules 37, 38 and 39 shall be those notified by the concerned authorities under the provisions of the relevant statutes from time to time.

41.

Restoration of flora.

(1)

Every holder of prospecting license or a mining lease shall carry out prospecting or mining operations, as the case may be, in such a manner so as to cause least damage to the flora of the area held under prospecting license or mining lease and the nearby areas.

(2)

Every holder of prospecting license or a mining lease shall-

(a)

take immediate measures for planting in the same area or any other area selected by the Controller General or the authorised officer not less than twice the number of trees destroyed by reason of any prospecting or mining operations;

(b)

look after them during the subsistence of the license/lease after which these trees shall be handed over to the State Forest Department or any other authority as may be nominated by the Controller General or the authorised officer; and

(c)

restore, to the extent possible, other flora destroyed by prospecting or mining operations.

Chapter VI

Employment Of Qualified Persons

[42. Employment of geologists and mining engineer

(1)

For the purpose of carrying out reconnaissance, prospecting or mining operations in accordance with these rules :

(a)

every holder of reconnaissance permit shall employ a whole-time geologist;

(b)

every holder of prospecting License shall employ a whole-time geologist and mining engineer;

(c)

every holder of a mining lease shall employ, in case of :-

(i)

category 'A' mines, a whole-time mining engineer and geologist;

(ii)

category 'B' mines, a part-time mining engineer and a part-time geologist :

Provided that in the case of fully mechanized category 'A' mines, the mining engineers and geologists shall have minimum ten years of professional experience of working in a supervisory capacity in the field of mining:

Provided further that in case of category ' B ' mines, a person employed in terms of the provisions of sub-rule (6) may be permitted to be employed in lieu of part-time mining engineer.

(2)

For the purpose of this rule -

(i)

category 'A' mines means

(a)

such fully mechanized mines where the work is being carried out by deployment of heavy mining machinery for deep hole drilling, excavation, loading and transport, or

(b)

such mines where the number of average employment exceeds one hundred and fifty in all or seventy-five workings below ground, or mines where any of the mining operations like deep hole drilling, excavation, loading and transport is carried out with the help of heavy machinery.

(ii)

category '13' mines means mines other than category 'A' mines :

Provided that if any doubt arises as to whether any mine is a category 'A' mine, it shall be referred to the Controller General, Indian Bureau of Mines for decision.

Explanation : The expression 'average employment' means the average per day of the total employment of the mine during the preceding quarter (obtained by dividing the number of man days worked by the number of working days).

(3)

The part-time mining engineer and geologist can be employed up to a maximum of six prospects or mines, provided that all such prospects or mines are located within a radius of 50 kilometres.

(4)

If the holder of a reconnaissance permit, prospecting License or a mining lease is a geologist or mining engineer, he may appoint himself as the geologist or mining engineer for the purpose of sub-rule (1).

(5)

A mining engineer or geologist employed by the holder of a prospecting License or mining lease shall possess the qualifications specified below :-

Geologist : A postgraduate degree in Geology granted by a University established or incorporated by or under a Central Act, a Provincial Act or a State Act, including any institution recognized by the University Grants Commission established under section 4 of the University Grants Commission Act, 1956 or any equivalent qualification.

Mining Engineer : A degree in Mining Engineering granted by a University established or incorporated by or under a Central Act, a Provincial Act or a State Act, including any institution recognized by the University Grants Commission established under section 4 of the University Grants Commission Act, 1956 or any equivalent qualification.

(6)

(a)

Any person possessing the qualification and experience for the category of mines as laid down in the Table below shall be eligible to be employed in lieu of part-time mining engineers in respect of the category of mines specified.

Table

Qualifications

Experience

Category of Mines

(1)

(2)

(3)

(i) Diploma in Mining or Postgraduate Degree in Geology with First Class Metalliferrous Mine Manager's Certificate

Nil

Category 'B' Mines

(ii) Holder of First Class Metalliferrous Mine Manager's Certificate

Two years experience Category after obtaining the Certificate

Category 'B' Mines

(iii) Diploma in Mining or Postgraduate Degree in Geology or equivalent

3 years experience in supervisory Category capacity in Mines

Category 'B' Mines

(iv) Graduate in Geology or holder of Second Class Metalliferrous Mine Manager's Certificate
5 years experience after graduation or one year experience after obtaining the Certificate

Category 'B' Mines

(v) Secondary School Leaving Certificate with Mines Foreman's Certificate

5 years experience as a Mine Foreman/Mate

All open cast mines of Category 'B'

(b)

The person permitted to be employed in lieu of mining engineer shall be bound by these rules in the same way as the mining engineer.

(7)

Where, due to reduction in average employment in the mines, a category 'A' mines, qualifies to become a category 'B' mines, the employment of a mining engineer as required for category 'B' mines may be done only with previous permission in writing of the Controller General or the authorized officer and subject to such conditions as he may specify.]

Substituted by Notification No. G.S.R. 216 (E) dated 29.3.2010 (w.e.f. 24.10.1988)

42. Employment of geologist and mining engineer.

(1) For the purpose of carrying out prospecting and mining operations in accordance with these rules-

(a) every holder of a prospecting license shall employ a part-time or whole-time geologist or mining engineer; and

(b) every holder of a mining lease shall employ-

(i) [in case of the following category "A" mines, a whole-time mining engineer, namely:-

[Substituted by G.S.R. 744(E), dated 25.9.2000 (w.e.f. 25.9.2000).]

(a) fully mechanised category "A" mines which shall be such mines where the work is being carried out by deployment of heavy mining machinery for deep hole drilling, excavation, loading and transport, and

(b) other than fully mechanised category "A" mines which shall be such mines where the number of average employment exceeds one hundred and fifty in all or seventy-five in workings below ground, or a mine where any of the mining operations like deep hole drilling, excavation, loading and transport is carried out with the help of heavy machinery]:

Provided that if any doubt arises as to whether any mine is a category "A" mine, it shall be referred to the Controller General for decisions;

(ii) in the case of any other mine, referred to as category "B" mine, either a part-time mining engineer or a full time person permitted to be employed in terms of the provisions of sub-rule (6).

Explanation.-The expression "average employment" means the average per day of the total employment of the mine during the preceding quarter (obtained by dividing the number of man days worked by the number of working days).

(2) The part-time geologist or mining engineer may be employed upto a maximum of six prospects or mines, provided that all such prospects or mines are located within a radius of 50 kilometres.

(3) The Controller General may, if he considers necessary on geological considerations, require the holder of a mining lease to also employ a part-time or whole-time geologist.

(4) If the holder of a prospecting license or mining lease is a geologist or mining engineer, he may appoint himself as the geologist or mining engineer for the purpose of sub-rule (1).

(5) A mining engineer or geologist employed by the holder of a prospecting license or mining lease shall possess the qualifications specified below:

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Geologist

A post-graduate degree in Geology granted by a University established or incorporated by or under a Central Act, A Provincial Act or a State Act, including any institution recognized by the University Grants Commission established under section 4 of the University Grants Commission Act, 1956 or any equivalent qualification.

Mining Engineer

A degree in Mining Engineering granted by a University established or incorporated by or under a Central Act, a Provincial Act, or a State act, including any institution recognized by the University Grants Commission established under section 4 of the University Grants Commission Act, 1956 or any equivalent qualification.

[* * *]

[Clauses (a), (b) and (c) omitted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(d)

[Persons possessing the qualifications and experience corresponding to the category of mines as laid down in the Table below shall be eligible to be employed in respect of the category of mines specified:

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

TABLE

Qualifications

Experience

Category of mines

(1)

(2)

(3)

(i) Diploma in Mining or Post graduate degree in Geology with First Class Metalliferous Mine Manager's Certificate

Nil

All Category "B" Mines

(ii) Holder of First Class Metalliferous Mine Manager's Certificate

Two years experience after obtaining the certificate

All Category "B" Mines

(iii) Diploma in Mining or Post-graduate degree in Geology or equivalent

3 years experience in supervisory capacity in mine

All Category "B" Mines

(iv) Graduate in Geology or holder of Second Class Metalliferous Mine Manager's Certificate

5 years experience after graduation or one year's experience after obtaining the certificate

All category "B" Mines

(v) Secondary School Leaving Certificate with Mines Foreman's Certificate

5 years experience as a Mines Foreman/Mate

All open cast mines of Category "B"]

]

(e)

The person permitted to be employed in lieu of mining engineer shall be bound by these rules in the same way as the mining engineer">

(e)

The person permitted to be employed in lieu of mining engineer shall be bound by these rules in the same way as the mining engineer">

(e)

The person permitted to be employed in lieu of mining engineer shall be bound by these rules in the same way as the mining engineer">

(e)

The person permitted to be employed in lieu of mining engineer shall be bound by these rules in the same way as the mining engineer.

(7)

Where, due to reduction in average employment in the mine, a category "A" mine qualifies to become a category "B" mine, the employment of a mining engineer as required for category "B" mine may be done only with previous permission in writing of the Controller General or the authorised officer and subject to such conditions as he may specify.

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43.

Duties of geologist.

(1)

It shall be the duty of the geologist to conduct prospecting operations in accordance with the provisions of these rules.

(2)

He shall-

(a)

prepare the necessary geological plans and sections which are required to delineate the ore body;

(b)

calculate ore reserves and its grade;

(c)

be responsible for providing all the necessary information required for controlling the quality of the minerals produced;

(d)

maintain proper records of the prospecting operations and records of sinking of shafts and boreholes as provided under these rules;

(e)

work out the appropriate method of sampling and ensure preparation of samples accordingly;

(f)

maintain an assay plan in cases of underground workings;

(g)

maintain all technical data for determining the shape and size of each stope block;

(h)

update the reserve figures, grade-wise and category-wise at the end of every year in case of a working mine;

(i)

identify the associated rocks and minerals and maintain proper records of the stocks of non-salable/sub-grade ores and minerals produced;

(j)

carry out all such orders and directions as may be given in writing under these rules by the Controller General or the

authorised officer [and shall forward a copy of all such orders or directions to the holder of the prospecting license or, as the case may be, the mining lease]

[Added by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

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44.

Duties of mining engineer.

(1)

It shall be the duty of the mining engineer to take all necessary steps to plan and the conduct mining operations, so as to ensure conservation of minerals, systematic development of the mineral deposits and protection of environment in and around the mining lease area in accordance with these rules.

(2)

He shall be responsible for the preparation and maintenance of the plans, sections, reports and schemes in accordance with these rules.

(3)

He shall be responsible for carrying out the study of the associated rocks and minerals, identifying them and stacking the various minerals produced separately.

(4)

He shall carry out all such orders and directions as may be given in writing under these rules by the Controller General or the authorised officer [and shall forward a copy of such orders or directions to the holder of prospecting license or, as the case may be, the mining lease.]

[Added by G.S.R. 227(E), dated 22.4.1991 (w.e.f. 22.4.1991).]

(5)

Wherever the mining engineer is appointed to supervise the prospecting operations under rule 42, he shall also carry out the duties of the geologist.

(6)

(a)

The mining engineer shall ensure that there is sufficient provision of proper materials, appliances and facilities at all times at the mine for the purpose of carrying out the provisions of these rules and orders issued thereunder and where he is not the owner or agent of the mine, he shall make requisition in writing to the owner or agent for anything required for the aforesaid purpose. A copy of every such requisition shall be recorded in a bound paged book kept for the purpose.

(b)

On receipt of a requisition under clause (a), the owner or agent shall provide as soon as possible the materials and facilities requisitioned by the mining engineer.

Chapter VII

Notices And Returns

[45. Monthly and annual returns - (1) The owner, agent, mining engineer or manager of every mine, or any person or company engaged in trading or storage or end-use or export of minerals mined in the country; shall cause himself to be registered with the Indian Bureau of Mines as per application specified in Form M and the registration number SO allotted by the Indian Bureau of Mines shall be used for all purposes of reporting and correspondence connected therewith.

(2)

For the purpose of registration under sub-rule (1), the owner, agent, mining engineer or manager of every mine, or any person or company engaged in trading or storage or end-use or export of minerals, shall apply [for registration, in electronic form, within one month from the date of registration of lease deed or before the commencement of trading operation or storage or end-use or export minerals, as the case may be.]

[Substituted by Notification No. G.S.R. 75 (E) dated 9.2.2011 (w.e.f. 24.10.1988)]

(3)

[The Indian Bureau of Mines shall allot and record the registration number in the register referred to in sub-rule (4).]

[Substituted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

(4)

The Indian Bureau of Mines shall maintain a register giving details of the owner, agent, mining engineer or manager of every mine, or any person Or company engaged in trading or storage or end-use or export of minerals, as the case may be, as registered under the provisions of these rules, which shall be made available to the general public for inspection on demand, and also posted on the website of the Indian Bureau of Mines.

(5)

The owner, agent, mining engineer or manager of every mine, shall submit [online]

[Inserted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

to the Regional Controller of Mines in the Indian Bureau of Mines or any other authorized official of the Indian Bureau of Mines, returns in respect of each mine, in the following manner, namely:-

(a)

[a daily return which shall be submitted through the Mobile application of the Indian Bureau of Mines, latest by 1800 hours of the following day;

[Substituted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

(aa)

a monthly return which shall be submitted before the 10th day of every month in respect of the preceding month in electronic form, along with a print copy of the same if it is not digitally signed, in the respective Form as indicated below:-

(i)

for all minerals except copper, gold, lead, pyrite, tin, tungsten, zinc, precious and semi-precious stones, in Form F-1;

(ii)

for copper, gold, lead, pyrite, tin, tungsten, zinc, in Form F-2; and

(iii)

for precious and semi-precious stones, in Form F-3;

(b)

an annual return which shall be submitted before the 1st day of July each year for the preceding financial year in electronic form, along with a print copy of the same if it is not digitally signed, in the respective Form as indicated below:-

(i)

for all minerals except copper, gold, lead, pyrite, tin, tungsten, zinc precious and semi-precious stones, in Form H-1;

(ii)

for copper, gold, lead, pyrite, tin, tungsten, zinc, in Form H-2; and

(iii)

for precious and semi-precious stones, in Form H-3:

Provided that in case of abandonment of a mine, the annual return shall be submitted within one hundred and five days from the date of abandonment.]

(6)

Any person or company engaged in trading or storage or end-use or export of minerals, shall submit [online]

[Inserted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

to the Indian Bureau of Mines and concerned State Government, where the said person or company is sourcing the minerals, the returns [in electronic form, along with a print copy of the same if it is not digitally signed,]

[Inserted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

in the following manner, namely:-

(i)

a monthly return which shall be submitted before the 10th of every month in respect of preceding month in Form N;

(ii)

an annual return which shall be submitted before the 1st July each year for the preceding financial year in the Form O.

(7)

If it is found that the owner, agent, mining engineer or manager of mine or the person or company engaged in trading or storage or end-use or export of minerals, as the case may be, has submitted incomplete or wrong or false information in [daily or monthly]

[Substituted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

or annual returns or fails to submit a return within the date specified, -

(i)

in the case of mining of minerals by the owner, agent, mining engineer or manager of mine, then the Regional Controller of Mines may, -

- (a)
order suspension of all mining operations in the mine and may revoke the order of suspension only after ensuring proper compliance;
- (b)
take action to initiate prosecution under these rules;
- (c)
recommend termination of the mining lease, in case such suppression or misrepresentation of information indicates abetment or connivance of illegal mining;

(ii)
in the case of trading or storage or end-use [* * *]

[Omitted 'or export' by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

of minerals, the State Government, where the person or company engaged in trading or storage or end-use [* * *]

[Omitted 'or export' by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]

of minerals is sourcing the minerals, shall order suspension of, -

- (a)
trading License (by whatever name it is called);
 - (b)
all transportation permits issued to such person or company for mineral transportation (by whatever name it is called);
 - (c)
storage License for stocking minerals (by whatever name it is called);
 - (d)
permits for end-use industry [* * *]
- [Omitted 'or carrying out export' by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988).]
of minerals (by whatever name it is called);
as the case may be, of such person or company engaged in trading or storage or end-use or
export of minerals, and may revoke the order of suspension only after ensuring proper compliance.

(iii)
[in the case of export of minerals, the Directorate General of Foreign Trade shall order suspension of permits for carrying out such exports of minerals of such person or company engaged in export of minerals, and may revoke the order of suspension only after ensuring proper compliance.]

[Inserted by Notification No. G.S.R. 430(E), dated 19.4.2016 (w.e.f. 24.10.1988)]

(8)
[In case of mining of minerals by the owner, agent, mining engineer or manager of mine the -

(a)
sale value is the gross amount payable by the purchaser as indicated in the sale invoice, where the sale transaction is on an arms' length basis and the price is the sole consideration for the sale, excluding taxes, if any.
Explanation. - For the purpose of computing sale value, no deduction from the gross amount shall be made in respect of royalty, payments to the District Mineral Foundation and payments to the National Mineral Exploration Trust;

(b)
ex-Mine price of mineral grade or concentrate shall be,-

(l)
where export has occurred, the total of, sale value on free-on-board (F.O.B) basis, less the actual expenditure incurred beyond the mining lease area towards -

- (i)
transportation charges by road;
- (ii)
loading and unloading charges;
- (iii)
railway freight (if applicable);

(iv)

port handling charges or export duty;

(v)

charges for sampling and analysis;

(vi)

rent for the plot at the stocking yard;

(vi)

handling charges in port;

(vii)

charges for stevedoring and trimming;

(viii)

any other incidental charges incurred outside the mining lease area as notified by the Indian Bureau of Mines from time-to-time,

divided by the total quantity exported.

(II)

where domestic sale has occurred, the total of sale value of the mineral less the actual expenditure incurred towards transportation, loading, unloading, rent for the plot at the stocking yard, charges for sampling and analysis and any other charges beyond mining lease area as notified by the Indian Bureau of Mines from time-to-time, divided by the total quantity sold;

(III)

where sale has occurred, between related parties and is not on arms' length basis, then such sale shall not be recognised as a sale for the purposes of this rule and in such case, sub-clause (IV) shall be applicable;

(IV)

where the sale has not occurred, the average sale price published monthly by the Indian Bureau of Mines for that mineral grade or concentrate for a particular State:

Provided that if for a particular mineral grade or concentrate, the information for a State for a particular month is not published by the Indian Bureau of Mines, the last available information published for that mineral grade or concentrate for that particular State by the Indian Bureau of Mines in the last six months previous to the reporting month shall be referred, failing which the latest information for All India for the mineral grade or concentrate, shall be referred;

(V)

the cost of production in case of captive mines.

(9)

In case of trading or storage or end use or export of minerals, for the purpose of filing of returns, the value of the mineral grade or concentrate shall be,-

(a)

where the sale of the mineral grade or concentrate has occurred and the sale transaction is on an arms' length basis and the price is the sole consideration for the sale, the sale value of the mineral grade or concentrate recorded in the invoice;

(b)

where the sale has not occurred, the product of average sale price published monthly by the Indian Bureau of Mines for a particular mineral grade or concentrate for a particular State and the quantity dispatched or procured:

Provided that if for a particular mineral grade or concentrate, the information for a State for a particular month is not published by the Indian Bureau of Mines, the last available information published for that mineral grade or concentrate for that particular State by the Indian Bureau of Mines in the last six months previous to the reporting month shall be referred, failing which the latest information for All India for the mineral grade or concentrate, shall be referred.]

[Substituted by Notification No. G.S.R. 19.4.2016 (w.e.f. 24.10.1988).]

(10)

If more than one mineral is produced from the same mine, return shall be submitted in specified forms for each mineral separately.

(11)

In case of temporary discontinuance of mining or suspension of mining, or temporary discontinuance or suspension of

trading or storage or end-use or export of minerals, the owner, agent, mining engineer or manager of mine, or the person or company engaged in trading or storage or end-use or export of minerals, as the case may be, shall submit return in the specified form for the mineral for which return had been submitted earlier, furnishing relevant particulars, inclusive of "Nil" information.

(12)

In case ownership of the mine or the trading or storage or end-use or export company changes during the reference period, separate returns have to be filled by each owner for the respective periods of ownership.

(13)

For the purpose of regulation of transportation of minerals, all persons and companies owning trucks or any other motorised vehicle used for transportation of mineral by road or through water way shall be required to be registered with the Directorate of Mining and Geology or the Department handling mining matters in the State Government and the lessee shall maintain trip-sheets (either in the form of written record or on computers) of the vehicles, the nature and weight of mineral and the approximate time of the trip and its destination.]

46.

Notice of certain appointments.

- When any new appointment is made of an agent, mining engineer, geologist, manager or any person under sub-rule (6) of rule 42 or when the employment of any such person is terminated or any such person leaves the said employment or when any change occurs in the address of any such person, the owner of the mine or the holder of the prospecting license shall, within fifteen days from the date of such appointment, termination, leaving or change in address give a notice in [Form I]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

to the Controller General, Controller of Mines and the Regional Controller.

47.

Notice of shaft sinking and boreholes.

- The owner, agent, mining engineer, geologist or manager of every mine or the holder of a prospecting license shall send intimation in [Form J]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

to the Controller General, Controller of Mines and the Regional Controller within fifteen days after the commencement of any of the following operations:

(a)

the sinking of trial shaft or borehole to a depth exceeding ten metres from the surface, or

(b)

the extension of an existing shaft or borehole to a depth exceeding ten metres, or

(c)

the sinking of a new shaft or boreholes commencing from underground workings:

Provided that the Controller General or the authorised officer may permit such intimation to be given collectively within such extended period as may be specified by him.

48.

Records of shafts and boreholes.

- The owner, agent, mining engineer, geologist or manager of every mine or the holder of a prospecting license shall keep a record in [Form K]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

of all shafts or boreholes exceeding ten metres in depth and shall retain all records and sample of the strata passed through for a period of not less than twelve months after the completion of the work or abandonment thereof:

Provided that the records of boreholes and shafts exceeding one hundred metres length shall not be destroyed except with the prior approval of the Controller General or the Regional Controller.

49.

Change in the name of mine to be notified.

- The owner, agent, mining engineer or manager of every mine shall send a notice in [Form C]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

to the Controller General, the Controller of Mines and the Regional Controller, of any change in the name of the mine

within thirty days of such change.

50.

Notice of transfer of prospecting license or mining lease.

- Without prejudice to the provisions of the Act or any rules made thereunder or the terms and conditions of a prospecting license or a mining lease, prohibiting or restricting the transfer of a prospecting license or a mining lease, every holder of a prospecting license or a mining lease who transfers or assigns his license or lease or any right, title or interest thereunder to any other person, shall, within thirty days of the date of such transfer or assignment send an intimation thereof in [Form L]

[Substituted by G.S.R. 580(E), dated 4.8.1995.]

to the Controller General, the Controller of Mines and the Regional Controller.

[50-A. Notice of amalgamation of mining lease.

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

- Without prejudice to the provisions of the Act or any rules made thereunder or the terms and conditions of a mining lease, every holder of a mining lease shall within thirty days of the date of amalgamation of mining leases carried out under rule 38 of Mineral Concession Rules, 1960, send an intimation thereof to the Controller General and the State Government.]

51.

Transfer of records to transferees.

- When the ownership of a prospecting license or a mining lease is transferred, the previous owner or his agent shall make over to the new owner or his agent within a period of seven days of the transfer of the ownership, borehole cores preserved, if any, all plans, sections, reports, registers and other records maintained in pursuance of the Act, Rules or Orders made thereunder, and all correspondence relevant thereto relating to the prospecting license or mining lease; and when the requirements of these rules have been duly complied with, both previous and the new owners or their respective agents shall forthwith send to the Controller General, Controller of Mines and the Regional Controller a detailed list of borehole cores, plans, sections reports, registers and other records that have been transferred.

52.

Copies of notices/returns to be submitted to the State Government.

- The owner, agent, mining engineer or manager of every mine or a holder of a prospecting license shall simultaneously submit a copy each of the notice/return/intimation required to be submitted under these rules to the State Government concerned in whose territory the mine or the prospecting area is situated or to such authority as that Government may specify in this behalf.

53.

Copies of notices and returns to be maintained.

- The owner, agent, mining engineer or manager of every mine or a holder of a prospecting license shall maintain the labour attendance register, production and despatch register, explosives consumption register, mineral analysis reports and details of mining machinery and copies of all notices and returns, plans, sections and schemes submitted to the Controller General under these rules, at an office established in the area where mining or prospecting operations are carried on, and these shall be made available at all reasonable times to the officers of the Indian Bureau of Mines for inspection.

Chapter VIII

Examination Of Minerals And Issue Of Directives

54.

Power to issue directions.

(1)

The owner, agent, mining engineer, geologist or manager of every mine shall comply with such directions being directions for purposes of providing for systematic development of mineral deposits, conservation of minerals and for the protection of the environment by preventing or controlling pollution which may be caused by prospecting, mining, beneficiation or metallurgical operations, as the Controller General may issue from time to time. A copy of the proposed directions to be issued to any particular mine will be sent by the Controller General to the owner, agent mining engineer, geologist or manager of the mine concerned, and to the State Government concerned, and any comments received from the owner, agent, mining engineer, geologist or manager of the mine and the State Government within thirty days of the

date of service of the notice, shall be duly considered by him before issuing any such directions. General directions applicable to a class of mines shall be issued by Controller General with the previous approval of the Central Government in consultation with the State Government concerned.

(2)

An order made under sub-rule (1) shall-

(a)

in the case of an order of a general nature or affecting a class of persons, be notified in Official Gazette; and

(b)

in the case of an order directed to a specified individual, be served on such individual, (i) by delivering or tendering it to that individual, or if it cannot be so delivered or tendered, by affixing it on the outer door or some other conspicuous part of the premises in which that individual lives, and a written report thereof shall be prepared and witnessed by two persons living in the neighbourhood.

55.

Examination of mineral deposits and taking of samples.

- The Controller General or any officer duly authorised by the Government to enter and inspect a mine, and examine any mineral deposit in any area under prospecting license or mining lease and take samples therefrom at any time for the purpose of these rules.

56.

Prohibition of deployment in certain cases.

- If any mine or part thereof, which in the opinion of the Controller General, Chief Controller of Mines or the Controller of Mines poses a grave and immediate threat to the conservation of minerals or to environment, he may, by an order in writing to the owner, agent, mining engineer or manager, require him to take such measures as may be specified in the order and may prohibit, until the requirements as specified in the order are complied with to his satisfaction, the deployment of any person other than those required for compliance with the requirement of the order.

Chapter IX

Revision And Penalty

57.

Revision.

(1)

Any person aggrieved by any order made or direction issued under these rules by any officer subordinate to the Controller General, [or an officer of the State Government, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

may within thirty days of the communication of such order or direction, apply to the Controller General for a revision of the order or direction, provided that any such application may be entertained after the said period of thirty days if the applicant satisfies the Controller General that he had sufficient cause for not making the application within time:

[Provided that if any order made or direction issued as aforesaid by an officer subordinate to the Chief Controller of Mines, the application shall be made to the Chief Controller of Mines who shall deal with the application in the manner prescribed hereunder.]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(2)

Every order against which a revision application is preferred under sub-rule (1) shall be complied with pending receipt of the decision of the appellate officer:

[Provided that the Controller General or the Chief Controller of Mines, as the case may be, may suspend operation of the order appealed against, pending disposal of the revision application.]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(3)

On receipt of an application for revision under sub-rule (1), the Controller General [or the Chief Controller of Mines, as the case may be,]

[Inserted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

after giving a reasonable opportunity of being heard to the aggrieved person, may confirm, modify or set aside the order passed by an officer subordinate to him.

(4)

[Any person aggrieved by any order made or direction issued by the Chief Controller of Mines may, within thirty days of the communication of such order or direction, apply to the Controller General for a revision of the order or direction, provided that any such application may be entertained after the said period of thirty days, if the applicant satisfies the Controller General that he had sufficient cause for not making the application within time.]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(5)

[On receipt of any such application under sub-rule (4), the Controller General may confirm, modify or set aside the order or direction made or issued by the Chief Controller of Mines or may pass such orders in relation to the applicant, as it may deem fit and such decision shall be final.]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

(6)

Every order against which a revision application is preferred under sub-rule (4), shall be complied with pending receipt of the decision of the [Controller General]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

:

Provided that the [Controller General]

[Substituted by G.S.R. 55(E), dated 17.1.2000 (w.e.f. 18.1.2000).]

may, on an application made by the applicant, suspend operation of the order appealed against pending disposal of the revision application.

(7)

Every application submitted under the provisions of this rule shall be accompanied by a Treasury Receipt showing that a fee of Rs. 500 has been paid into a Government Treasury or any branch of the State Bank of India doing Treasury Business to the credit of the Central Government under "Major Head-0853-Non-Ferrous Mining & Metallurgical Industries, 800-Other receipts" or by a Bank Draft on a Nationalised Bank for [Rs. 1,000 (Rupees One thousand)]

[Substituted by G.S.R. 330(E), dated 10.4.2003 (w.e.f. 10.4.2003).]

in the name of Pay and Accounts Officer, Indian Bureau of Mines Payable at Nagpur.

58.

[Penalty.

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

- Whoever contravenes any of the provisions of these rules shall be punishable with imprisonment for a term which may extend up to two years, or with fine extending to fifty thousand rupees or with both, and in the case of continuing contravention with an additional fine which may extend up to five thousand rupees for every day during which such contravention continues, after conviction for the first such contravention:

Provided that for repeated contravention the punishment should be in the form of imprisonment only:

Provided further that any offence punishable under these rules may either before or after the institution of the prosecution, be compounded by the authorised officer to make a complaint to the Court with respect to that offence, on payment to that officer for credit to the Government, of such sum that the officer may specify:

Provided also that in case of an offence punishable with fine only, such sum shall not exceed the maximum amount of fine which may be imposed for that offence:

Provided further that where an offence is compounded under these rules, on proceeding or further proceeding, as the case may be, shall be taken against the offender in respect of the offence so compounded, and the offender, if in custody, shall be released forthwith.]

Chapter X

Miscellaneous

59.

Preservation of cores, etc.

- The owner, agent, mining engineer, geologist or manager of every mine or the holder of a prospecting license shall preserve intact all cores and specimens of different types of rocks and minerals obtained during drilling or sinking operations and arrange for them to be laid out in a serial order with identification marks, showing the progressive depth at which they are obtained. Such specimens shall not be broken except for the purpose of analysis and testing in which

case, representative samples of the specimens so broken will be preserved for a period of not less than six months from the date of completion of drilling or sinking operations. The Controller General, by an order in writing, may require the cores or specimens of rocks and minerals obtained from specific boreholes or shafts to be preserved for any specific period or relax the provisions of this rule to such an extent as he may deem fit.

60.

Facilities for undertaking research or training.

- Every holder of a prospecting license or a mining lease shall afford all reasonable facilities to persons authorised by the Controller General for the purpose of undertaking research or training in matters relating to mining or geology.

61.

Submission of records/reports regarding research in geology or mining.

(1)

Any person, institution or agency carrying on prospecting or mining operations related to any research in geology or mining, shall inform the Controller General and the Regional Controller, within a period of thirty days of commencement of such research related operations, indicating briefly the aspects proposed to be covered under such research together with the name and address of the person, institution, or agency carrying out such research work and the expected duration of the research related operations.

(2)

(a)

On completion of the said research work, a report describing the observations, analysis and conclusions reached as a result of the said research work shall be submitted to the Controller General within thirty days of its completion.

(b)

The information so received will be kept confidential, if required. The Government will, however, be free to utilise the information for general studies, planning or policy making purpose.

(3)

The provisions of sub-rules (1) and (2) shall also apply *mutatis mutandis* to any agency of the Central Government or State Government carrying out the research work.

62.

Territorial jurisdiction of Controller of Mines/Regional Controller.

- The Controller General may by a notification in the Official Gazette prescribe the limits of the territorial jurisdiction of the Controller of Mines and the Regional Controller for purposes of these rules.

63.

[Obligation to supply other information.

[Substituted by G.S.R. 22(E), dated 11.1.2002 (w.e.f. 11.1.2002).]

- The holder of reconnaissance permit, prospecting license or mining lease, or his agent shall furnish such information regarding his reconnaissance or prospecting operations or mine or any matter connected therewith as the Controller General or the authorised officer may require by an order in writing and the information shall be furnished within such time as may be specified in the aforesaid order.]

64.

Provisions of these rules to be applicable to Government.

- The Government or its agencies carrying out mining operations without a mining lease shall be bound by all the provisions of these rules in the same manner as they are applicable to holders of mining leases.

65.

Chief Controller of Mines, etc., to exercise powers of the Regional Controller of Mines.

- Any power granted under these rules to the Regional Controller of Mines may be exercised by the Controller of Mines or the Chief Controller of Mines.

66.

Repeal and savings.

- The Mineral Conservation and Development Rules, 1958 are hereby repealed.

Notwithstanding such repeal, anything done or any action taken, including any order made, direction given or notice issued under the Mineral Conservation and Development Rules, 1958 shall insofar as it is not inconsistent with the provisions of these rules, be deemed to have been done, taken, made, given or issued, as the case may be, within the

corresponding provisions of these rules.

Schedule

Form A

Notice of Commencement of Prospecting Operations

(See rule 7)

Important

This Form, duly filled in must reach the concerned authorities within fifteen days of the commencement of prospecting operations.

To

1.

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

*2.

*2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

*3.

The Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4.

State Government concerned.

.....

1.

Name of the mineral or minerals for which prospecting license has been granted.

(a)_____ (c)_____

(b)_____ (d)_____

2.

Name and address of the licensee.

.....

PIN.....

3.

In case the licensee is a company or Partnership firm or co-operative, please indicate.

(i) Name and address of the Director-in-charge

.....

PIN.....

(ii) Address of the Register Office

.....

PIN.....

4.

Particulars of prospecting license

(PL) :

(i) Date of execution

.....

(ii) Period

.....

years,

From.....

To.....

(iii) Area under license

..... Hectares.

5.

Location of the prospecting licensed area:

(i) Topo sheet Number

.....

(ii) Cadastral Survey or Khasra Number

.....

(iii) Village

.....

(iv) (a) Post Office

.....

(b) Police Station

.....

(v)(a) Taluka

.....

(b) District

.....

(c) State

.....

(vi)(a) Nearest Railway Station

.....

(b) The distance there from (Kilometres)

.....

(vii)(a) Nearest Rest House/Dak Bungalow

.....

(b) Its distance from

(1) The Railway Station (Kilometres)

.....

(2) The prospecting area (Kilometres)

.....

6.

Particulars of Geologist or Mining Engineer employed for the prospecting licensed area:

(i) Name and address

.....

PIN.....

(ii) Qualifications

.....

(iii) Date of appointment

.....

(iv) Nature of appointment

Whole-time?Part-time?

(Please tick (?) mark one of the boxes whichever is applicable).

7.

Date of commencement of prospecting operations :

.....

Place.....

Signature.....

Date.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

[Form AA]

[Inserted by G.S.R. 55 (E), dated 17-1-2000 (w.e.f. 18-1-2000).]

Notice Of Commencement Of Reconnaissance Operations

(See rule 3-D)

Important

This Form, duly filled in must reach the concerned authorities within fifteen days of the commencement of reconnaissance operations.

To

1.

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

*2.

*2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

*3.

The Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4.

State Government concerned.

.....

PIN.....

1.

Name of the mineral or minerals for which reconnaissance permit has been granted.

(a)_____ (c)_____

(b)_____ (d)_____

2.

Name and address of the permit holder

.....

.....

3.

In case the permit holder is a company or Partnership firm or co-operative, please indicate-

(i) Name and address of the Director-in-charge

.....

(ii) Address of the Registered Office

.....

4.

Particulars of reconnaissance permit

(i) Date of execution

.....

(ii) Period

.....

years,

From.....

To.....

(iii) Area under permit

..... Hectares.

5.

Location of the reconnaissance permit area (A map showing the location on scale 1250,000 should be enclosed)

(i) Topo sheet Number(s)

.....

(ii) Co-ordinates of corner points

.....

(iii)(a) District(s)

.....

(b) State

.....

6.

Particulars of Geologist or Mining Engineer, if any, employed for the reconnaissance

(i) Name and address

.....

(ii) Qualifications

.....

(iii) Date of appointment

.....

(iv) Nature of appointment

Whole-time?Part-time?

(Please tick (?) mark one of the boxes, whichever is applicable).

7.

Date of commencement of reconnaissance operations :

.....

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.].

Form B

Yearly Report Of The Prospecting Operations Carried Out

[See rule 8(1)(b) and 8(2)]

Important

This, Form duly, filled in, must reach the concerned authorities within thirty days after expiration of one year from the date of execution of prospecting license or the expiry of prospecting license or abandonment of prospecting operations, whichever is earlier.

To

1.

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

*2.

*2. The Controller of Mines,

.....
Indian Bureau of Mines,
PIN.....

*3.

The Regional Controller of Mines,
.....

Indian Bureau of Mines,
PIN.....

4.

State Government concerned.
.....

1.

Name of the mineral or minerals for which prospecting license has been granted.

(a) _____ (c) _____

(b) _____ (d) _____

2.

Name and address of the licensee
.....
.....

PIN.....

3.

Particulars of prospecting license

(PL) :

(i) Date of execution
.....

(ii) Period
.....
.....

years,

From..... to

(iii) Area under license

..... Hectares.

(iv) Number and date assigned by State Government to prospecting license

(a) Number
.....

(b) Date
.....

4.

Location of prospecting licensed area

:

(i) Topo sheet Number
.....

(ii) Cadastral survey or khasra number
.....

(iii) Village
.....

(iv)(a) Taluka
.....

(b) District
.....

(c) State
.....

5.

Particulars of Geologist/Mining Engineer-in-charge of prospecting operations :

(i) Name and address

.....

.....

PIN.....

(ii) Qualifications

.....

(iii) Date of appointment

.....

(iv) Nature of appointment

Whole-time?Part-time?

(Please tick (?) mark one of the boxes, whichever is applicable).

6.

(i) Status of prospecting operation :

In progress

(Please tick (?) mark one of the boxes, whichever is applicable).

Completed?

Abandoned?

(ii) If prospecting operation is completed or abandoned date of such completion or abandonment

.....

7.

Total surface area covered by prospecting work (hectares) as on date

.....

8.

Completion of prospecting work during the year

(a) Pitting

(i) Number of pits

.....

(ii) Depth (metres)

Average

.....

Maximum

.....

Minimum

.....

(b) Trenching

(i) Number of trenches

.....

(ii) Length (metres)

Average

Maximum

.....

Minimum

.....

(c) Drilling

SurfaceUnderground

(i) Number of boreholes completed during the year

.....

(ii) Number of boreholes in progress, if any

.....

(iii) Total annual drilling (metres)

.....

(d) Particulars of drilling machines:

TypeMakeCapacityNumber of drills

.....

(e) Exploratory mining, if any:

(1) Number of levels

.....

(2) Total development (metres)

.....

(3) Mode of entry

.....

(4) Quantity of ore produced with grade

.....

(f) Number of samples analysed :

(1) Main constituent (please specify)

.....

(2) Complete analysis

.....

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified, from time to time, by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

Note. - Please enclose a geological report describing the prospecting operations undertaken so far along with the detailed geological plans and sections showing locations of (a) boreholes, (b) pits, (c) trenches, (d) shafts, (e) underground exploratory workings, (f) outcrops, (g) ore zones, (h) faults, (i) folds and other geological features.

The Report shall contain the borehole logs and interpretation and the inferences drawn as a result of the study of the geology of the area and the interpretation of the borehole cores, pits, trenches, assay data, reserves of ore and contain results of complete analysis of at least two representative samples of ore and the blocks proposed for mining operations.

The report shall also contain the results of any beneficiation study carried out on the ores or minerals of the area.

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

[Form-BB]

[Inserted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000).]

(See rule 3-E)

Progress report of reconnaissance survey in respect of.....[the name of the mineral(s)].....for the year.....

Submitted to:

Important

This Form duly filled-in must reach the Concerned authorities within thirty days after expiration of one year from the date of execution of reconnaissance permit or the expiry of reconnaissance permit or abandonment of reconnaissance operations, whichever is earlier.

1.

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

*2.

*2. The Controller of Mines,

.....
Indian Bureau of Mines,
PIN.....

*3.

The Regional Controller of Mines,
.....

Indian Bureau of Mines,
PIN.....

4.

State Government concerned.
.....

1.

Name of the permit holder
.....

2.

Nature of the firm
.....

3.

Address of the firm
.....

4.

Area under permit
.....

(square kms.)

5.

Location :

(i) Topo sheet No. (s)

(ii) Co-ordinates of corner point

(iii) District(s)
.....

(iv) State
.....

6.

Date of grant of permit

7.

Period of permit

8.

Reconnaissance survey work done

(A brief description of the work involved alongwith particulars of the machines and instruments used would be given against each of the following items)

(i) Regional survey

(ii) Aerial/photogeological work

(iii) Geological mapping including area covered and scale

(iv) Geophysical

(v) Geochemical

(vi) Test drilling : Number, area of influence meterage and sampling

9.

Nature and structure of the ore body

10.

Analysis of the ores or minerals

11.

If abandoned

(i) Date of abandonment

(ii) Reasons for abandonment

Signature.....

(Full name of the signatory)

Designation.....

and

Address.....

Date of despatch.....

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation & Development Rules, 1988.]

Form C

Notice Of Intimation Of Opening/Reopening Of Mine/Change In The Name Of Mine

[See rules 22(1), 22(2), 25 and 49]

Important

Notice in this, Form shall be sent so as to reach concerned authorities within fifteen days of the date of opening/reopening/change in name of mine.

To

1.

1. The Controller General,
Nagpur

Indian Bureau of Mines,
PIN 440001

2.

Controller of Mines,
.....

Indian Bureau of Mines,
PIN.....

3.

The Regional Controller of Mines,
.....

Indian Bureau of Mines,
PIN.....

4.

State Government concerned

1.(i) Name of the mineral worked

.....

(ii) Name(s) of other minerals, if any, for which lease has been granted :

.....

2.(i) Name of the mine

.....

(ii) Change in the name of mines, if any:

.....

(Indicate old name and reason of change)

.....

3. Name and address of the lessee/owner:

.....

4. Ownership of the mine

(a) Public Sector

(b) Joint Sector

(c) Private Sector

[4-A. Date of opening/reopening of mine:]

[Inserted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000)]

.....

[4-B. In case of reopening, date of discontinuation]

[Inserted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000)]

.....

5.

Particulars of the mining lease (ML)

:

(i) Date of execution

.....

(ii) Period

.....

years,

from.....

to.....

(iii) Area under lease

..... Hectares.

6.

Location of the mining lease :

(i) Village..... Distt..... Taluka/Tehsil.....

(ii) Post Office..... Police Station..... Distt.....

(iii) Nearest Railway Station..... Distance.....

(iv) Nearest Rest House/Dak Bangalow.....

7.

Name and address of previous owner, if any and the date of abandonment:

.....

.....

PIN.....

Date.....

8.

Particular of agent:

.....

Name and address:

.....

9.

Particulars of Mining Engineer employed in the mines :

(i) Name and address :

(ii) Qualification:

(iii) Date of appointment :

(iv) Status of employment:

Whole-time?Part-time?

10.

Particulars of the manager of the mine:

.....

Name and address

.....

11.

Letter No. and date through which the mining plan was approved by the Indian Bureau of Mines

Letter No.....

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

(Strike out the items which are not applicable)

[Form D]

[Substituted 'Form D and Form D-1' by G.S.R. 330 (E), dated 10-4-2003 (w.e.f. 10-4-2003).]

Notice Of Intention Of Abandonment Of Mine Or Part Of The Mine

[See rule 23(2)]

To

1. The Controller General,

Indian Bureau of Mines,

Nagpur - 440001

2. The Controller of Mines,

Indian Bureau of Mines,

.....

PIN.....

3. The Regional Controller of Mines,

Indian Bureau of Mines,

4. State Government concerned

Important

Notice in this form shall reach the concerned authorities within 90 days of the date of intention of abandonment.

1. (i) Name of the mineral worked:

(ii)

Name of other minerals worked, if any:

2. Name of the mine:

3. Name and address of the lessee/owner:

4. Particulars of mining lease (ML):

(i)

Date of execution:

(ii)

Period.....years, from.....to.....

(iii)

Area under lease.....hectares.

5. Location of mine:

(a)

Village:

(b)

Post Office:

(c)

District:

(d)

State:

6. Name and address of agent:

7. Name and address of Mining Engineer:

8. Date of abandonment:

9. Reasons for abandonment:

[Please tick (?) whichever is applicable]

(i) Lack of demand

?

(ii) Exhaustion of ore/mineral

?

(iii) Un-economic operations

?

10. Reserve of Mineral(s) in Mining Lease area (in tonne):

(i)

Proved

(ii)

Probable

(iii)

Possible

11. Number of workers employed in the mine: Male Female

(a)

Company labour

(b)

Contract labour

Total

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

Form D-1

Notice of Temporary Discontinuance of Mine

(See rule 24)

To

1. The Controller General,

Indian Bureau of Mines,

Nagpur - 440001

2. The Controller of Mines,

Indian Bureau of Mines,

.....

PIN.....

3. The Regional Controller of Mines,

Indian Bureau of Mines,

4. State Government concerned.

Important

Notice in Form shall reach the concerned authorities within one hundred and five days of temporary discontinuance of work in the mine. If the discontinuance is due to natural calamity beyond the control of the lessee or Government Orders, this notice shall be sent within fifteen days of such occurrence.

1. (i) Name of the mineral worked:

(ii)

Name of the other minerals worked, if any:

2. Name of the mine:

3. Name and address of the lessee/owner:

4. Particulars of mining lease (ML):

(i)

Date of execution:

(ii)

Period.....years, from.....to.....

(iii)

Area under lease.....hectares.

5. Location of mine:

(a)

Village:

(b)

Post Office:

(c)

District:

(d)

State:

6. Name and address if Agent:

7. Name and address of Mining Engineer:

8. Date of temporary discontinuance:

9. Reasons for temporary discontinuance:

[Please tick (?) whichever is applicable]

(i)Lack of demand

?

(ii)Non-availability of Labour

?

(iii) Rains

?

(iv) Transport bottleneck

?

(v)Strike/Lockout

?

(vi) Operation becoming uneconomic

?

(vii)Other reasons (specify)

?

10. Probable date of re-opening of the mine :

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

Form E

Notice Of Commencement Of Stopping

[See rule 26(2)]

Mine Code.....

Important

Notice in this Form shall be sent at least sixty days before the commencement of stopping operations to the concerned authority.

To

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440 001

2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

3. The Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4. State-Government concerned

.....

1. (a) Name of mine

.....

(b) Section/pit number**

.....

(c) Mineral/minerals worked

.....

2. Name and address of -

(a) Owner

.....

(b) Agent

.....

(c) Manager

.....

(d) Mining Engineer/Geologist employed under rule 42

.....

3. Date of expiry of lease

.....

4. Date on which it is proposed to commence stopping

.....

5. Extent of development in the mine:

.....

(a) Number of shafts/inclines/and its width/depth/length

.....

(b) Maximum depth and development

.....

(c) Number of levels with their extent

.....

(d) Total meterage of development

.....

(e) Total number of blocks developed including the total tonnage and grade (excluding blocks already stopped out and already permitted for stopping)

.....

6. Details of the blocks applied for stopping :

(a) Number and size of each block, their levels tonnage and grade

.....

(b) Method of stopping to be adopted

-
.....

(i) A description of the method with appropriate drawings to illustrate the stope preparation sequence of operation and extraction

.....

(ii)Rate of stopping contemplated in each block (monthly)

.....

(iii)Estimated recovery from each block

.....

(iv) Estimated dilution
.....

(v) Estimated tonnage and grade of ore to be extracted
.....

7. Is this a first application for stopping for this mine? If not, the following details may be furnished.
.....

(i) Date of previous application(s) for stopping:
.....

(ii) Date and reference of permission or refusal by this department (mention blocks and their levels)
.....

(iii) Have all the blocks for which stopping permission was granted, been stopped out? If not, mention the specific blocks that are remaining to be stopped out, indicating the state of stopping operations therein
.....

8. Rate of development and programme of forming additional stope blocks simultaneously with the proposed stopping.
.....

9. List of enclosures

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

**This is applicable in cases where the main mine is divided into more than one district/section/pit.

Note. - Information in respect of items 5 and 6(a) should be accompanied by (I) underground composit plan, (ii) longitudinal section, (iii) geological/assay plan of the levels at which stoping is proposed including one level above and below , and (iv) transverse sections at reasonable intervals for the portion covered under (iii) above.

[Form F-1]

[Substituted "Form F-1 to F-8" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

Monthly Return

[See rule 45(5) (aa) (i)]

For the month of.....20.....

Monthly Return

[To be used for minerals other than Copper, Gold, Lead, Pyrites, Tin, Tungsten, Zinc and precious and semi-precious stones]

To

(i)

The Regional Controller of Mines

Indian Bureau of Mines

_____ Region,

PIN:

(Please address to Regional Controller of Mines in whose territorial jurisdiction the mines falls as notified from time to time by the Controller General, Indian Bureau of Mines under Rule 62 of the Mineral Conservation and Development rules, 1988)

(ii)

The State Government

Part I ? General And Labour

1. Details of the Mine:

(a) Registration number allotted by Indian Bureau of Mines (to give registration number of the Lessee/ Owner)

(b) Mine Code (allotted by Indian Bureau of Mines)

(c) Name of the Mineral

(d) Name of Mine

(e) Name(s) of other mineral(s), if any, produced from the same mine

(f) Location of the Mine :

Village

Post Office

Tahsil/Taluk

District

State

PIN Code

Fax no:

E-mail:

Phone no:

Mobile:

2. Name and address of Lessee/Owner (along with fax no. and e-mail):

Name of Lessee/Owner

Address

District

State

PIN Code

Fax no:

E-mail:

Phone No:

Mobile:

3. Details of Rent/ Royalty/ Dead Rent/ DMF/ NMET amount paid in the month

(i) Rent paid (Rs)

(ii) Royalty paid (Rs)

(iii) Dead Rent paid (Rs)

(iv) Payment made to the DMF (Rs)

(v) Payment made to the NMET (Rs)

4. Details on working of mine:

(i) Number of days the mine worked:

(ii) Reasons for work stoppage in the mine during the month (due to strike, lockout, heavy rain, non-availability of labour, transport bottleneck, lack of demand, uneconomic operations, etc.) and the number of days of work stoppage for each reason separately

Reasons

No of days

5. Average Daily Employment and Total Salary/Wages paid #:

Work place

Direct

Contract

Total Salary/Wages (Rs)

Male

Female

Male

Female

Direct

Contract

Below ground

Opencast

Above ground

Total

To include all employees exclusive to the mine and attached factory, working or mineral dressing plant at the mine site.

Part-II (Production, Despatches and Stocks)

(To be submitted separately for each mineral)

(Unit of Quantity in Tonnes)

1. Type of ore produced:

(Applicable for Iron ore only; tick mark whichever is applicable)

(a)

Hematite

(b)

Magnetite

2. Production and Stocks of ROM ore at Mine-head

Category

Opening stock

Production

Closing stock

(a) Open Cast workings

(b) Underground Workings

(c) Dump workings

3.

(i)

Grade-wise ROM ore despatches from mine head (\$):

Grade of ROM@

Despatches from mine-head

Ex-mine Price (Rs)

(\$): Applicable for iron ore and chromite only. For other minerals data of despatches to be reported in 3(ii)

3.

(ii)

Grade-wise Production, Despatches, Stocks and Ex-mine prices:

Grades**

Opening stock at mine-head

Production

Despatches from mine-head

Closing stock at mine-head

Ex-mine price (?/ Tonne)

3.

(iii)

In case the mineral is being pulverised in own factory, please give the following particulars (*):

Grade**

Total quantity of mineral Pulverized (in tonnes)

Total quantity of pulverized mineral produced

(for each mesh size)

Total Quantity of pulverized mineral sold during the month

Mesh size

Quantity (tonne)

Mesh size

Quantity (tonne)

Ex-factory Sale value (?)

3.

(iv)

Average cost of pulverization (*) : ? _____ per tonne.

(*): Not applicable for Iron ore, Manganese ore, Bauxite and Chromite

4. Details of deductions made from sale value for computation of Ex-mine price (Rs./ Tonne)

Deduction

claimed

Amount(in Rs/Tonne)

Remarks

a) Cost of transportation (indicate loading station and distance from mine in remarks)

b) Loading and unloading charges

c) Railway freight, if applicable (indicate destination and distance)

d) Port handling charges/ export duty (indicate name of port)

e) Charges for sampling and analysis

f) Rent for the plot at Stocking yard

g) Other charges (specify clearly)

Total (a) to (g)

Not applicable for captive dispatches and ex-mine sales

5. Sales/ Dispatches effected for Domestic Purposes and for Exports:

Grade (^)

Nature of Despatch (indicate whether Domestic

Sale or Domestic Transfer or Captive consumption or Export)

For Domestic Purposes

For export

Registration number as allotted by the Indian

Bureau of Mines to the buyer ##

Consignee name ##

Quantity

Sale value (Rs)

Country

Quantity

F.O.B Value(Rs)

(^): To indicate the grades of ores as mentioned below (see @ and **)

To indicate separately if more than one buyer.

Note:- Mine owners are required to substantiate domestic sale value/ FOB value for each grade of ore quoted above with copy of invoices (not to be submitted with the return; to be produced whenever required).

6. Give reasons for increase/decrease in production/nil production, if any, during the month compared to the previous month.

a)

b)

c)

7. Give reasons for increase/decrease in grade wise ex-mine price, if any, during the month compared to the previous month.

a)

- b)
c)
I certify that the information furnished above is correct and complete in all respects.

Place:

Signature

Date:

Name

in full:

Designation: Owner/ Agent/ Mining Engineer/

Manager

@ Grades of ROM ore dispatched:

Mineral

Grades

Iron ore

a) Below 51%

Fe ROM

b) 51% to

below 55% Fe ROM

c) 55% to

below 58% Fe ROM

d) 58% to

below 60% Fe ROM

e) 60% to

below 62% Fe ROM

f) 62% to

below 65% Fe ROM

g) 65% and

above Fe ROM

Chromite

a) Below 40%

Cr₂O₃ ROM

b) 40% to

below 52 % Cr₂O₃ ROM

c) 52% and

above Cr₂O₃ ROM

**Grades of minerals to be reported in the above tables are as given below. (If separate grades are not mentioned below, report the mineral name against grade):

Mineral

Grades

Iron ore

(i) Lumps:

a) Below 51% Fe

b) 51% to below 55% Fe

c) 55% to below 58% Fe

d) 58% to below 60% Fe

e) 60% to below 62% Fe

f) 62% to below 65% Fe

g) 65% and above Fe

(ii) Fines:

a) Below 51% Fe

b) 51% to below 55% Fe

- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

(iii) Concentrates

(iv) Calibrated Lump Ore (CLO)

(Quantity already reported in Lumps should not be reported against CLO)

- a) Below 62% Fe (CLO any size)
- b) 62% to below 65% Fe (5-18 mm size CLO)
- c) 62% to below 65% Fe (10-40 mm size CLO)
- d) 62% to below 65% Fe (CLO others)
- e) 65% and above Fe (5-18 mm size CLO)
- f) 65% and above Fe (10-40 mm size CLO)
- g) 65% and above Fe (CLO others)

Manganese Ore

(i) Ore

- a) Below 25% Mn
- b) 25% to below 35% Mn
- c) 35% to below 46% Mn
- d) 46% and above Mn
- e) Dioxide ore

(ii) Concentrates

Bauxite

(i) For use in alumina and aluminium extraction:-

(Please also furnish the actual averages of the ore falling within the following ranges of grades):

- a) Below 40% Al_2O_3
- b) 40% to below 45% Al_2O_3
- c) 45% to below 50% Al_2O_3
- d) 50% to below 55% Al_2O_3
- e) 55% to below 60% Al_2O_3
- f) 60% and above Al_2O_3

(ii) For use other than alumina and aluminium metal extraction

- a) Cement
- b) Abrasive
- c) Refractory
- d) Chemical

Chromite

(i) Lumps

- a) Below 40% Cr_2O_3
- b) 40% to below 52 % Cr_2O_3
- c) 52% and above Cr_2O_3

(ii) Fines

- a) Below 40% Cr₂O₃
- b) 40% to below 52 % Cr₂O₃
- c) 52% and above Cr₂O₃

(iii) Concentrates

Asbestos

- a) Amphibole
- b) Chrysotile

Fluorite/Fluorspar

- a) 80% and above CaF₂
- b) 70% to below 80% CaF₂
- c) 30% to below 70% CaF₂
- d) Below 30% CaF₂

Graphite

- a) With 80% or more fixed carbon
- b) With 40 % or more fixed carbon but less than 80% fixed carbon
- c) With 20% or more fixed carbon but less than 40% fixed carbon
- d) With less than 20% fixed carbon

Kyanite

- a) 40% and above Al₂O₃
- b) Below 40% Al₂O₃

Limestone

- a) LD Grade (less than 1.5% silica content)
- b) SMS
- c) BF
- d) Chemical
- e) Cement

Rock Phosphate/ Phosphorite

- a) Above 30% P₂O₅
- b) Above 25% to 30% P₂O₅
- c) Above 20% to 25% P₂O₅
- d) Upto 20% P₂O₅

[Form F-2]

[Substituted "Form F-1 to F-8" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(5) (aa) (ii)]

For the month of _____ 20

Monthly Return

[To be used for minerals Copper, Gold, Lead, Pyrites, Tin, Tungsten and Zinc]

To

(i)

The Regional Controller of Mines

Indian Bureau of Mines

_____ Region,

PIN:

(Please address to Regional Controller of Mines in whose territorial jurisdiction the mines falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

(ii)

The State Government

Part - I (General and Labour)

1. Details of the Mine:

(a) Registration number allotted by Indian Bureau of Mines (to give registration number of the Lessee/ Owner)

(b) Mine Code (allotted by Indian Bureau of Mines)

(c) Name of the Mineral

(d) Name of Mine

(e) Name(s) of other mineral(s), if any, produced from the same mine

(f) Location of the Mine :

Village

Post Office

Tahsil/Taluk

District

State

PIN Code

Fax no:

E-mail:

Phone no:

Mobile:

2. Name and address of Lessee/Owner (along with fax no. and e-mail):

Name of Lessee/Owner

Address

District

State

PIN Code

Fax no:

E-mail:

Phone No:

Mobile:

3. Details of Rent/ Royalty/ Dead Rent/ DMF/ NMET amount paid in the month

(i) Rent paid (Rs)

(ii) Royalty paid (Rs)

(iii) Dead Rent paid (Rs)

(iv) Payment made to the DMF (Rs)

(v) Payment made to the NMET (Rs)

4. Details on working of mine:

(i) Number of days the mine worked:

(ii) Reasons for work stoppage in the mine during the month (due to strike, lockout, heavy rain, non-availability of labour, transport bottleneck, lack of demand, uneconomic operations, etc.) and the number of days of work stoppage for each reason separately

Reasons

No of days

5. Average Daily Employment and Total Salary/Wages paid #:

Work place

Direct

Contract

Total Salary/Wages (Rs)

Male

Female

Male

Female

Direct

Contract

Below ground

Opencast

Above ground

Total

To include all employees exclusive to the mine and attached factory, working or mineral dressing plant at the mine site.

Part-II (Production, Despatches and Stocks)

(To be submitted separately for each mineral)

(Unit of Quantity in Tonnes)

1. Production and Stocks of ROM ore

Opening stocks

Production

Closing stocks

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

A. From Underground workings

i) From

Development

ii) From

Stoping

B. From Opencast workings

Total

2. Ex-mine price of the ore produced (Rs per unit):

3. Recoveries at Concentrator/Mill/Plant:

Opening stocks of

the Ore at concentrator/plant

Ore received from the mine

Ore treated

Quantity

Metal content/grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Concentrates * Obtained

Tailings

Closing stocks of concentrates at the
concentrator/plant

Quantity

Metal content/grade

Value (Rs)

Quantity

Metal content/grade

Quantity

Metal content/grade

*In case of any leaching method adopted, give quantity recovered and grade contained separately.

4. Recovery at the Smelter/Mill/Plant:

Opening Stocks of the concentrates at the
smelter/ plant

Concentrates received from concentrator/ plant

Concentrates received from other sources

(specify)

Concentrates sold (if any)

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Concentrates treated

Closing stocks of concentrate at the Smelter/
Plant

Metals(*) recovered (specify)

Other by-products, if any, recovered

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Grade

Value (Rs)

Quantity

Grade

Value (Rs)

(*) Please give category-wise break-up viz. blister, fire refined copper, cathodes, electrolytic copper wire bars, lead ingots, zinc cathodes, zinc dross, gold, tungsten etc.

5. Sales during the month:

Metal/ Product

Opening stocks of Metals/ Products

Place of sale

Metals/Products sold(@)

Closing stocks of Metals/ Products

Quantity

Grade

Quantity

Grade

Value(#) (Rs)

Quantity

Grade

Note:

(#) Please give ex-plant sale value.

(@) Please give category-wise break-up of metals and other products sold.

6. Details of deductions made from sale value for computation of Ex-mine price (Rs/ Unit)

Deduction claimed #

Amount (in Rs./ Unit)

Remarks

a) Cost of transportation (indicate loading station and distance from mine in remarks)

b) Loading and unloading charges

c) Railway freight, if applicable (indicate destination and distance)

d) Port Handling charges/export duty (indicate name of port)

e) Charges for sampling and analysis

f) Rent for the plot at Stocking yard

g) Other charges (specify clearly)

Total (a) to (g)

Not applicable for captive dispatches and ex-mine sales

7. Sales/ Dispatches of ore and concentrates effected for Domestic Purposes and for Exports:

Grade (ore/ Conc.)

Nature of Despatch (indicate whether Domestic

Sale or Domestic Transfer or Captive consumption or Export)

For Domestic Purposes

For export

Registration number as allotted by the Indian

Bureau of Mines to the buyer ##

Consignee name ##

Quantity

Sale value (Rs)

Country

Quantity

F.O.B Value(Rs)

To indicate separately if more than one buyer.

Note. - Mine owners are required to substantiate domestic sale value/ FOB value for each grade quoted above with copy of invoices (not to be submitted with the return; to be produced whenever required).

8. Give reasons for increase/decrease in production/nil production, if any, during the month compared to the previous month.

a)

b)

c)

9. Give reasons for increase/decrease in grade wise ex-mine price, if any, during the month compared to the previous month.

a)

b)

c)

I certify that the information furnished above is correct and complete in all respects.

Place:

Signature

Date:

Name

in full:

Designation: Owner/ Agent/ Mining Engineer/
Manager

[Form F-3]

[Substituted "Form F-1 to F-8" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(5) (aa) (iii)]

For the month of _____ 20

Monthly Return

[To be used for precious and semi-precious stones]

To

(i)

The Regional Controller of Mines

Indian Bureau of Mines

_____Region,

PIN:

(Please address to Regional Controller of Mines in whose territorial jurisdiction the mines falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

(ii)

The State Government

Part - I (General and Labour)

1. Details of the Mine:

(a) Registration number allotted by Indian Bureau of Mines (to
give registration number of the Lessee/ Owner)

(b) Mine Code (allotted by Indian Bureau of Mines)

(c) Name of the Mineral

(d) Name of Mine

(e) Name(s) of other mineral(s), if any, produced from the
same mine

(f) Location of the Mine :

Village

Post Office

Tahsil/Taluk

District

State

PIN Code

Fax no:

E-mail:

Phone no:

Mobile:

2. Name and address of Lessee/Owner (along with fax no. and
e-mail):

Name of Lessee/Owner

Address

District

State

PIN Code

Fax no:

E-mail:

Phone No:

Mobile:

3. Details of Rent/ Royalty/ Dead Rent/ DMF/ NMET amount

paid in the month

(i) Rent paid (Rs)

(ii) Royalty paid (Rs)

(iii) Dead Rent paid (Rs)

(iv) Payment made to the DMF (Rs)

(v) Payment made to the NMET (Rs)

4. Details on working of mine:

(i) Number of days the mine worked:

(ii) Reasons for work stoppage in the mine during the month
(due to strike, lockout, heavy rain, non-availability of labour,
transport bottleneck, lack of demand, uneconomic operations,
etc.) and the number of days of work stoppage for each reason
separately

Reasons

No of days

5. Average Daily Employment and Total Salary/Wages paid #:

Work place

Direct

Contract

Total Salary/Wages (Rs)

Male

Female

Male

Female

Direct

Contract

Below ground

Opencast

Above ground

Total

To include all employees exclusive to the mine and attached factory, working or mineral dressing plant at the mine site.

Part-II (Production, Despatches and Stocks)

(To be submitted separately for each mineral)

1. R.O.M. production

Category

Unit of quantity

Quantity

(a) Opencast workings

(b) Underground workings

2. Production, stocks and dispatches:-

Gem Variety

Industrial

Others

Rough and uncut stones

Cut and Polished Stones

No. of stones

Qty @

No. of stones

Qty @

No. of stones

Qty @

No. of stones

Qty @

A .Opening stocks

B. Production

(i) From

Opencast Working

(ii) From

underground working

Total (Production)

C. Despatches

D. Closing Stocks

E. Ex-mine Price (Rs)

@:The Unit of quantity viz. Carats/Grams/Kilogram etc., as the case may be, should be indicated under quantity.

3. Details of deductions made from sale value for computation of Ex-mine price (Rs/ Unit)

Deduction claimed #

Amount(in Rs/ Unit)

Remarks

a) Cost of transportation (indicate loading station and distance from mine in remarks)

b) Loading and unloading charges

c) Railway freight, if applicable (indicate destination and distance)

d) Port handling charges/export duty (indicate name of port)

e) Charges for sampling and analysis

f) Rent for the plot at stocking yard

g) Other charges (specify clearly)

Total (a) to (g)

Not applicable for captive despatches and ex-mine sales

4. Sales/ Despatches effected for Domestic Purposes and for Exports:

Grade (*)

Nature of Despatch (indicate whether Domestic

Sale or Domestic Transfer or Captive consumption or Export)

For Domestic Purposes

For export

Registration number as allotted by the Indian

Bureau of Mines to the buyer ##

Consignee name ##

Quantity

Sale value (Rs)

Country

Quantity

F.O.B Value(Rs)

*: To indicate rough and uncut stones, cut and polished stones, industrial, others

To indicate separately if more than one buyer.

Note. - Mine owners are required to substantiate domestic sale value/ FOB value for each grade of ore quoted above with copy of invoices (not to be submitted with the return; to be produced whenever required).

5. Give reasons for increase/decrease in production/nil production, if any, during the month compared to the previous month.

a)

b)

c)

6. Give reasons for increase/decrease in grade wise ex-mine price, if any, during the month compared to the previous month.

a)

b)

c)

I certify that the information furnished above is correct and complete in all respects.

Place:

Signature

Date:

Name

in full:

Designation: Owner/ Agent/ Mining Engineer/

Manager

Omitted by Notification No. G.S.R. 75 (E) dated 9.2.2011 (w.e.f 24.10.1988)

Form F-9

Monthly Return

[See rule 45(1)(a)(ix)]

For the month of.....20.....

Mine Code.....

{|

MINE CODE.....

(i) Name of the Mineral

.....

(ii) Name of mine.....

.....

(iii) Name(s) of other mineral(s), if any, produced from the same mine

.....

To

1. Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

3. Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4. State Government concerned

.....

Part I ? General And Labour

1. Location of the

Mine:.....

.....

Village: Post Office:..... Tahsil/Taluka:

.....

District: State: PIN:

.....

The Mineral Conservation And Development Rules, 1988

2.	Name	and	address	of	Lessee/Owner:
3.	Number	of	days	the	mine worked :
4.	Rent	and	Royalty	paid	(in Rs.)
5. (I) Average Daily Employment of Labour/Wages paid :					
Work Place					
Direct labour					
Contract labour					
Wages					
(Rs.)					
Male					
Female					
Male					
Female					
Male					
Female					
Below ground Open-cast					
Above ground					
Total					
(ii)					
Total salaries paid to technical and supervisory staff.					
Part II ? Production, Despatches And Stocks					
(Unit of Quantity in Tonnes)					
Items					
R.O.M.OreProcessed/Sorted (Grades)					
Others					
Total					
A.					
Opening Stock at mine-head					
B.					
Production					
C.					
Pit Mouth Value					
D.					
Despatchesfrom mine					
(i) For Domestic Consumption					
Quantity (Tonne)					
SaleValue (Rs.)					
(ii) For Exports					
Quantity (Tonne)					
SaleValue (Rs.)					
E.					
Closing Stock at mine-head					
Note.- (a) Indicate reasons for work stoppage and number of days work stoppage.					
(b)					
Give reasons for increase/decrease in production, if any, during the month compared to the previous month.					
(c)					
[The data in Part-II above shall be furnished grade-wise. The grades for iron ore shall be as per Form F-1, those for manganese ore as per Form F-2, for bauxite and laterite as per Form F-3, for chromite as per Form F-4 , for copper,					

lead, zinc, pyrites, gold, tungsten as per Form F-5, for mica, as per Form F-6, for precious and semi-precious stones as per Form F-7, and for other minerals as mentioned in Form F-8, respectively.]

[Inserted by G.S.R. 330 (E), dated 10-4-2003 (w.e.f. 10-4-2003).]

I certify that the information furnished above is correct and complete in all respects.

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

l}

Form G

[See Rule 45(1)(b)]

MINE CODE?????????.

Annual Return indicating

(a) Consumption of explosives for the year 20??..20??.

(b) Estimated requirement of explosives for the next year 20??..20??.

To

1. Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

3. Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4. State Government concerned

.....

1. Name(s) of mineral(s) worked.....

2. Name of the mine.....

3. Location of the mine.....

village:..... Post Office :..... Tahsil/Taluka:.....

District..... State :..... PIN.....

4. Name and address of lessee/owner:.....

5. Licensed capacity of magazine.....

6. Total production during the year (tonne).....

7. Overburden removed

Classification of explosives

Unit

Quantity consumed during the year

Estimated requirement during the next year

Small dia.

(upto 32 mm)

Large dia.

(above 32 mm)

Small dia.

(upto 32 mm)

Large dia.

s(above 32 mm)

(1)

(2)

(3)

(4)

(5)

(6)

1. Gun Powder

kg.

2. Nitrate

kg.

Mixture

a. Loose ammonium nitrate

b. Ammonium nitrate in cartridged form

3. Nitro compound

kg.

4. Liquid Oxygen Soaked cartridges

kg.

5. Slurry explosives

kg.

(Mention different trade names)

6. Detonators

Nos.

1. Ordinary

2. Electrical

(a) Ordinary

(b) Delay

7. Fuse

Mts.

(a) Safety Fuse

(b) Detonating Fuse

8. Plastic ignition cord

Mts.

9. Others (Sepecify)

Mention

Mention the unit

Different sizes of soaked liquid oxygen cartrigdes to be converted to equivalent Kg. as per manufacturer's instruction.

Place.....

Date.....

Signature.....

Name in full.....

Designation:Owner/Agent/Mining Engineer/Manager

[Form H-1]

[Substituted "Form H-1 to H-8" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(5)(b)(i)]

For the financial year 1st April, 20__ to 31st March, 20__

Annual Return

[To be used for minerals other than Copper, Gold, Lead, Pyrites, Tin, Tungsten, Zinc and precious and semi-precious stones]

To

(i)

The Regional Controller of Mines
Indian Bureau of Mines
_____ Region,

PIN

(Please address to Regional Controller of Mines in whose territorial jurisdiction the mines falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

(ii)

The State Government

Part I ? (General)

1. Details of Mine:

(a)

Registration number allotted by Indian Bureau of Mines (to give registration number of the Lessee/Owner)

(b) Mine Code

(allotted by Indian Bureau of Mines)

(c) Name of

the Mineral

(d) Name of

Mine

(e) Name(s)

of other mineral(s), if any, produced from the same mine

2. Location of the Mine :

Village

Post Office

Tahsil/Taluk

District

State

PIN Code

Fax no:

E-mail:

Phone no:

Mobile:

3. Name and address of Lessee/Owner (along with fax no. and e-mail):

Name of

Lessee/Owner

Address

District

State

PIN Code³

Fax no:

E-mail:

Phone No:

Mobile:

4. Registered Office of the Lessee:

5. Director in charge :

6. Agent :

7. Manager :

8. Mining Engineer in charge:

9. Geologist in charge :

10. Transferor (previous owner), if any, and date of transfer:

11. Particulars of area operated/ Lease(Furnish information on items (i) to (vi) lease-wise in case mine workings cover more than one lease)

(i) Lease

number allotted by the State Government????????????????????

(ii) Area

under lease (hectares):

Under Forest

Outside

Forest

Total

(iii) Date of

execution of mining lease deed

(iv) Period

of lease

(v) Area for

which surface rights are held (hectares)

Under Forest

Outside

Forest

Total

(vi) Date and

period of renewal (if applicable)

(vii) In case

there is more than one mine in the same lease area, indicate name of mine and mineral produced

12. Lease area (surface area) utilisation as at the end of year (hectares):

Under forest

Outside forest

Total

(i) Already

exploited & abandoned by opencast (O/C) mining

(ii) Covered

under current (O/C) Workings

(iii)

Reclaimed/rehabilitated

(iv) Used for

waste disposal

(v) Occupied

by plant, buildings, residential, welfare buildings & roads

(vi) Used for

any other purpose (specify)

(vii) Work

done under progressive mine closure plan during the year

13. Ownership/exploiting Agency of the mine: (Public Sector/Private Sector/Joint Sector)

Part - II (Employment and Wages)

1.Number of supervisory staff

employed at the mine

Description

Wholly employed

Partly employed

(i) Graduate

Mining Engineer

(ii) Diploma

Mining Engineer

(iii)

Geologist

(iv)

Surveyor

(v) Other

administrative and technical supervisory staff

Total :

2.(i) Number of days the mine worked:

(ii) No. of

shifts per day:

(iii)

Indicate reasons for work stoppage in the mine during the year (due to strike, lockout, heavy rain, non-availability of labour, transport bottleneck, lack of demand, uneconomic operations, etc.) and the number of days of work stoppage for each of the factors separately.

Reasons

No. of days

3. Employment and salary/

wages paid :

Maximum number of persons employed

on any one day during the year:

(i) In workings below ground on (date)

(a) (number)

(ii) In all

in the mine on (date)

(a) (number).....

Classification

Total number of man days worked during the year

No. of days worked during the year

Average daily number of persons employed

Total Wages/ Salary for the year (Rs)

Direct

Contract

Total

Male

Female

Total

(1)

2(A)

2(B)

2(C)

(3)

4(A)

4(B)

4(C)

(5)

Below Ground

Opencast

Above Ground

Total:

To include all employees exclusive to the mine and attached factory, workshop or mineral dressing plant at the mine site

Part-II A (Capital Structure)

1. Value

of Fixed Assets* (Rs????????????)

(in respect of the mine,

beneficiation plant, mine work-shop, power and water installation)

In case this information is

furnished as combined information in another mine's return please specify Mine Code/Mine

Name:

Description

At the beginning of the year (Rs)

Additions during the Year (Rs)

Sold or discarded during the year (Rs)

Depreciation during the year (Rs)

Net closing Balance (Rs) (2+3)- (4+5)

Estimated market value** (Rs)

1

2

3

4

5

6

7

(i) Land***

(ii) Building:

Industrial

Residential

(iii) Plant and Machinery including transport equipment

iv) Capitalised Expenditure such as pre-production exploration, development, major overhaul and repair to machinery etc. (As prescribed under Income Tax Act)

Total:

* In case the fixed assets are common to more than one mine, furnish combined information for all such mines together in any one of the mine's return. In the returns for other mines, give only a cross reference to the particular mine's return where-in the information is included.

** Optional and may be furnished in respect of items (i), (ii) and (iii) if the mine owner desires.

*** Including any non-recurring expenditure incurred on the acquisition of land.

2. Source of Finance (at

the end of the year) :

(i) Paid up Share Capital (Rs)

(ii) Own Capital (Rs)

(iii) Reserve & Surplus (All Types)(Rs)

(iv) Long Term loans outstanding (#)(Rs)

Name of the

Institution/ Source

Amount of Loan (Rs)

Rate of Interest

(#) Indicate the names of the lending institutions such as State Finance Corporation, Industrial Development and other Public Corporations, Co-operative Banks, Nationalised Banks and other sources along with the amount of loan from each source and the rate of interest at which loan has been taken.

3. Interest and Rent (Rs)

(i) Interest paid during the year

(ii) Rents (excluding surface rent) paid during the year

Part - III (Consumption of Materials)

1. Quantity and cost of material consumed during the year

Description

Unit

Quantity

Value (Rs)

(i) Fuel

(a) Coal

Tonnes

(b) Diesel

Oil

Ltrs.

(c) Petrol

Ltrs.

(d) Kerosene

Ltrs.

(e) Gas

Cu.M.

(ii) Lubricant

(a) Lubricant

oil

Ltrs.

(b) Grease

Kgs.

(iii) Electricity

(a) Consumed

Kwh

(b) Generated

Kwh

(c) Sold

Kwh

(iv) Explosives (furnish full details in Part IV)

(v) Tyres

Nos.

(vi) Timber & Supports

(vii) Drill rods & kits

Nos.

(viii) Other spares & stores

2. Royalty, Rents and Payments made to DMF & NMET (Rs):

X

Paid for current year

Paid towards past arrears

(a) Royalty

(b) Dead rent

(c) Surface rent

(d) Payment made to DMF

(e) Payment made to NMET

3. Compensation paid for felling trees during the year (Rs)

4. Depreciation on fixed assets (Rs)

5. Taxes and cesses

X

Amount in Rupees paid during the year to:

X

Central Govt.

State Govt.

(i) Sales Tax

(ii) Welfare cess

(iii) Other taxes & cesses:-

(a) Mineral

cess

(b) Cess on

dead rent

(c) Others

(please specify)

6. Other expenses (Rs) :

(i) Overheads

(ii) Maintenance

(iii) Money value of other benefits paid to workmen

(iv) Payment made to professional agencies

Part -IV (Consumption of Explosives)

Licensed capacity of magazine:

(specify unit separately in kg/tonne, numbers, metres)

Item

Unit

Capacity

Classification of Explosives

Unit

Quantity consumed during the year

Estimated requirement during the next year

Small dia. (upto 32 mm)

Large dia. (above 32 mm)

Small dia. (upto 32 mm)

Large dia. (above 32 mm)

1. Gun Powder

Kg.

2. Nitrate Mixture

Kg.

X

X

X

X

a. Loose

ammonium nitrate

b. Ammonium

nitrate in cartridged form

3. Nitro compound Kg.

4. Liquid Oxygen soaked cartridges

Kg.

5. Slurry explosives (Mention different trade names)

Kg.

6. Detonators

No.s

X

X

X

X

i) Ordinary

ii)

Electrical

X

X

X

X

(a) Ordinary

(b) Delay

7. Fuse

Mts

X

X

X

X

(a) Safety

Fuse

(b)

Detonating Fuse

8. Plastic ignition cord

Mts

9. Others (specify)

(Mention the unit)

Different sizes of soaked liquid oxygen cartridges to be reported in equivalent kg. as per manufacturer's instruction.

Part-V (General Geology and Mining)

(Items 2 and 3 to be submitted separately for each mineral)

1. Exploration

(i)

Exploration activities during the year:

At the beginning of the year

During the year

Cumulative

Grid spacing/ Dimension

Drilling

No of holes

Metrage

Pitting

No of pits

Excavation (in m3)

Trenching

No of trenches

Excavation (in m3)

Length covered (in metre)

Expenditure on exploration (Rs)

X

(ii)

. Any other exploration activity during the year:

2. Reserves and Resources estimated (in tonnes).

Classification

Code

At the beginning of the year 1.4.20____

Assessed during the year

Depletion of reserves during the year

Balance resources as on 31.3.20____

(1)

(2)

(3)

(4)

(5)

(6) = (3+4-5)

A. Mineral Reserve

1. Proved Mineral Reserve

111

2. Probable mineral Reserve

121

122

3. Total Reserves

B. Remaining Resources

1. Feasibility mineral Resource

211

2. Prefeasibility mineral resource

221

222

3. Measured mineral resource

331

4. Indicated mineral resource

332

5. Inferred mineral resource

333

6. Reconnaissance mineral resource

334

7. Total remaining Resources

Total (A+B)

3. Subgrade/Mineral Reject (in tonnes). - (Information to be given in respect of mineral fractions generated and stacked/dumped below cut-off grade and above threshold value, if prescribed, having no immediate sale value)

At the beginning of the year

Generated during the year

Disposed during the year

Total stacked at the end of the year

Average grade of the mineral reject generated

4. Overburden and Waste (in m³). - (Information to be given in respect of overburden/ waste and mineral fractions generated below threshold value, if prescribed)

At the beginning of the year

Generated during the year

Disposed in dumps during the year

Back filled during the year

Total at the end of the year

5. Trees planted/ survival rate

Description

Within lease area

Outside lease area

i) Number of trees planted during the year

ii) Survival rate in percentage

iii) Total no. of trees at the end of the year

6. Type of Machinery. - Give the following information for the types of machinery in use such as hoist, fans, drills, loaders, excavators, dumpers, haulages, conveyors, pumps, etc.

Type of machinery

Capacity of each type of machinery

Unit (in which capacity is reported)

No. of machinery

Electrical/ Non-electrical (specify)

Used in opencast/ underground (specify)

7.

(i)

Details of mineral Treatment Plant, if any. - Give a brief description of the process capacity of the machinery deployed and its availability. (Submit Flow Sheet and Material Balance of the Plant separately).

(ii)

Furnish following information:

Item

Tonnage

Average Grade

Feed:

Concentrates/processed products :

(mention name)

By-products/Co-products:

(mention name)

Tailings:

Part-VI (Production, Despatches and Stocks)

(To be submitted separately for each mineral)

(Unit of Quantity in Tonnes)

1. Type of ore produced:

(Applicable for Iron ore only; tick mark whichever is applicable)

(a)

Hematite

(b)

Magnetite

2. Production and Stocks of ROM ore at Mine-head

Category

Opening stock

Production

Closing stock

(a) Open Cast workings

(b) Underground Workings

(c) Dump workings

3.

(i)

Grade-wise ROM ore despatches from mine head (\$):

Grade of ROM@

Despatches from mine-head

Ex-mine Price (Rs)

(\$): Applicable for iron ore and chromite only. For other minerals data of dispatches to be reported in 3(ii)

(ii)

Grade-wise Production, Despatches, Stocks and Ex-mine prices:

Grades**

Opening stock at mine-head

Production

Despatches from mine-head

Closing stock at mine-head

Ex-mine price (Rs /Tonne)

(iii)

In case the mineral is being pulverized in own factory, please give the following particulars (*):

Grade**

Total quantity of mineral Pulverized (in tonnes)

Total quantity of pulverized mineral produced

(for each mesh size)

Total Quantity of pulverized mineral sold during
the year

Mesh size

Quantity (tonne)

Mesh size

Quantity (tonne)

Ex-factory Sale value (Rs)

(iv)

Average cost of pulverization (*) : Rs _____ per tonne.

(*): Not applicable for Iron ore, Manganese ore, Bauxite and Chromite

4. Details of deductions made from sale value for computation of Ex-mine price (Rs/ Tonne)

Deduction

claimed #

Amount (in Rs/ Tonne)

Remarks

a) Cost of transportation (indicate loading station and
distance from mine in remarks)

b) Loading and unloading charges

c) Railway freight, if applicable (indicate destination and
distance)

d) Port handling charges/export duty (indicate name of port)

e) Charges for sampling and analysis

f) Rent for the plot at Stocking yard

g) Other charges (specify clearly)

Total (a) to (g)

Not applicable for captive dispatches and ex-mine sales

5. Sales/ Despatches effected for Domestic Purposes and for Exports:

Grade (^)

Nature of Despatch (indicate whether Domestic

Sale or Domestic Transfer or Captive consumption or Export)

For Domestic Purposes

For export

Registration number as allotted by the Indian

Bureau of Mines to the buyer ##

Consignee name ##

Quantity

Sale value (Rs)

Country

Quantity

F.O.B Value(Rs)

(^): To indicate the grades of ores as mentioned below (see @ and **)

To indicate separately if more than one buyer.

Note. - Mine owners are required to substantiate domestic sale value/ FOB value for each grade of ore quoted above with copy of invoices (not to be submitted with the return; to be produced whenever required).

6. Give reasons for increase/decrease in production/nil production, if any, during the year compared to the previous year.

a)

b)

7. Give reasons for increase/decrease in grade wise ex-mine price, if any, during the year compared to the previous year.

a)

b)

Part-VII Cost of Production

Cost of production per tonne of ore/mineral produced

Sl.No.

Item

Cost per tonne (Rs)

(i)

Direct Cost

(a) Exploration

(b) Mining

(c) Beneficiation(Mechanical Only)

(ii)

Over-head

cost

(iii)

Depreciation

(iv)

Interest

(v)

Royalty

(vi)

Payments made

to DMF

(vii)

Payments made
to NMET

(viii)

Taxes

(ix)

Dead Rent

(x)

Others

(specify)

Total

Note. - Information given under Part VII will be kept confidential. The Government, however, will be free to utilize the information for general studies without revealing the identity of the firm.

Verification

I certify that the information furnished above is correct and complete in all respects.

Place:

Signature

Date:

Name

in full:

Designation: Owner/ Agent/ Mining Engineer/

Manager

@ Grades of ROM ore dispatched:

Mineral

Grades

Iron ore

a) Below 51% Fe ROM

b) 51% to below 55% Fe ROM

c) 55% to below 58% Fe ROM

d) 58% to below 60% Fe ROM

e) 60% to below 62% Fe ROM

f) 62% to below 65% Fe ROM

g) 65% and above Fe ROM

Chromite

a) Below 40% Cr₂O₃ ROM

b) 40% to below 52 % Cr₂O₃ ROM

c) 52% and above Cr₂O₃ ROM

**Grades of minerals to be reported in the above tables are as given below. (If separate grades are not mentioned below, report the mineral name against grade):

Mineral

Grades

Iron ore

(i) Lumps:

a) Below 51% Fe

b) 51% to below 55% Fe

c) 55% to below 58% Fe

d) 58% to below 60% Fe

e) 60% to below 62% Fe

f) 62% to below 65% Fe

g) 65% and above Fe

(ii) Fines:

- a) Below 51% Fe
- b) 51% to below 55% Fe
- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe
- (iii) Concentrates
- (iv) Calibrated Lump Ore (CLO)(Quantity already reported in Lumps should not be reported against CLO)

- a) Below 62% Fe (any size)
- b) 62% to below 65% Fe (5-18 mm size CLO)
- c) 62% to below 65% Fe (10-40 mm size CLO)
- d) 62% to below 65% Fe (CLO others)
- e) 65% and above Fe (5-18 mm size CLO)
- f) 65% and above Fe (10-40 mm size CLO)
- g) 65% and above Fe (CLO others)

Manganese Ore

- (i) Ore
- a) Below 25% Mn
- b) 25% to below 35% Mn
- c) 35% to below 46% Mn
- d) 46% and above Mn
- e) Dioxide ore
- (ii) Concentrates

Bauxite

(i) For use in alumina and aluminium extraction:-(Please also furnish the actual averages of the ore falling within the following ranges of grades):

- a) Below 40% Al_2O_3
- b) 40% to below 45% Al_2O_3
- c) 45% to below 50% Al_2O_3
- d) 50% to below 55% Al_2O_3
- e) 55% to below 60% Al_2O_3
- f) 60% and above Al_2O_3

(ii) For use other than alumina and aluminium metal extraction

- a) Cement
- b) Abrasive
- c) Refractory
- d) Chemical

Chromite

- (i) Lumps
- a) Below 40% Cr_2O_3
- b) 40% to below 52 % Cr_2O_3
- c) 52% and above Cr_2O_3

(ii) Fines

- a) Below 40% Cr₂O₃
- b) 40% to below 52 % Cr₂O₃
- c) 52% and above Cr₂O₃

(iii) Concentrates

Asbestos

- a) Amphibole
- b) Chrysotile

Fluorite/ Fluorspar

- a) 80% and above CaF₂
- b) 70% to below 80% CaF₂
- c) 30% to below 70% CaF₂
- d) Below 30% CaF₂

Graphite

- a) With 80% or more fixed carbon
- b) With 40 % or more fixed carbon but less than 80% fixed carbon
- c) With 20% or more fixed carbon but less than 40% fixed carbon
- d) With less than 20% fixed carbon

Kyanite

- a) 40% and above Al₂O₃
- b) Below 40% Al₂O₃

Limestone

- a) LD Grade (less than 1.5% silica content)
- b) SMS
- c) BF
- d) Chemical
- e) Cement

Rock Phosphate/ Phosphorite

- a) Above 30% P₂O₅
- b) Above 25% to 30% P₂O₅
- c) Above 20% to 25% P₂O₅
- d) Upto 20% P₂O₅

[Form H-2]

[Substituted "Form H-1 to H-8" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(5)(b)(ii)]

For the financial year 1st April, 20__ to 31st March, 20__

Annual Return

[To be used for minerals other than Copper, Gold, Lead, Pyrites, Tin, Tungsten, Zinc and precious and semi-precious stones]

To

(i)

The Regional Controller of Mines

Indian Bureau of Mines

_____ Region,

PIN

(Please address to Regional Controller of Mines in whose territorial jurisdiction the mines falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

(ii)

The State Government

Part I ? (General)

1. Details of Mine:

(a)

Registration number allotted by Indian Bureau of Mines (to give registration number of the Lessee/Owner)

(b) Mine Code

(allotted by Indian Bureau of Mines)

(c) Name of

the Mineral

(d) Name of

Mine

(e) Name(s)

of other mineral(s), if any, produced from the same mine

2. Location of the Mine :

Village

Post Office

Tahsil/Taluk

District

State

PIN Code

Fax no:

E-mail:

Phone no:

Mobile:

3. Name and address of Lessee/Owner (along with fax no. and e-mail):

Name of

Lessee/Owner

Address

District

State

PIN Code3

Fax no:

E-mail:

Phone No:

Mobile:

4. Registered Office of the Lessee:

5. Director in charge :

6. Agent :

7. Manager :

8. Mining Engineer in charge:

9. Geologist in charge :

10. Transferor (previous owner), if any, and date of transfer:

11. Particulars of area operated/ Lease(Furnish information on items (i) to (vi) lease-wise in case mine workings cover more than one lease)

(i) Lease

number allotted by the State Government??????????????????

(ii) Area

under lease (hectares):

Under Forest

Outside

Forest

Total

(iii) Date of

execution of mining lease deed

(iv) Period

of lease

(v) Area for

which surface rights are held (hectares)

Under Forest

Outside

Forest

Total

(vi) Date and

period of renewal (if applicable)

(vii) In case

there is more than one mine in the same lease area, indicate name

of mine and mineral produced

12. Lease area (surface area) utilisation as at the end of

year (hectares):

Under forest

Outside forest

Total

(i) Already

exploited & abandoned by opencast (O/C) mining

(ii) Covered

under current (O/C) Workings

(iii)

Reclaimed/rehabilitated

(iv) Used for

waste disposal

(v) Occupied

by plant, buildings, residential, welfare buildings & roads

(vi) Used for

any other purpose (specify)

(vii) Work

done under progressive mine closure plan during the year

13. Ownership/exploiting Agency of the mine: (Public

Sector/Private Sector/Joint Sector)

Part - II (Employment and Wages)

1. Number of supervisory staff

employed at the mine

Description

Wholly employed

Partly employed

(i) Graduate

Mining Engineer

(ii) Diploma

Mining Engineer

(iii)

Geologist

(iv)

Surveyor

(v) Other

administrative and technical supervisory staff

Total :

2.(i) Number of days the mine worked:

(ii) No. of

shifts per day:

(iii)

Indicate reasons for work stoppage in the mine during the year (due to strike, lockout, heavy rain, non-availability of labour, transport bottleneck, lack of demand, uneconomic operations, etc.) and the number of days of work stoppage for each of the factors separately.

Reasons

No. of days

3. Employment and salary/

wages paid :

Maximum number of persons employed

on any one day during the year:

(i) In workings below ground on (date)

(a) (number)

(ii) In all

in the mine on (date)

(a) (number).....

Classification

Total number of man days worked during the year

No. of days worked during the year

Average daily number of persons employed

Total Wages/ Salary for the year (Rs)

Direct

Contract

Total

Male

Female

Total

(1)

2(A)

2(B)

2(C)

(3)

4(A)

4(B)

4(C)

(5)

Below Ground

Opencast

Above Ground

Total:

To include all employees exclusive to the mine and attached factory, workshop or mineral dressing plant at the mine

site

Part-II A (Capital Structure)

1. Value

of Fixed Assets* (Rs?????????????)

(in respect of the mine,

beneficiation plant, mine work-shop, power and water

installation)

In case this information is

furnished as combined information in another mine's return please

specify Mine Code/Mine

Name:

Description

At the beginning of the year (Rs)

Additions during the Year (Rs)

Sold or discarded during the year (Rs)

Depreciation during the year (Rs)

Net closing Balance (Rs) (2+3)- (4+5)

Estimated market value** (Rs)

1

2

3

4

5

6

7

(i) Land***

(ii) Building:

Industrial

Residential

(iii) Plant and Machinery including transport equipment

iv) Capitalised Expenditure such as pre-production

exploration, development, major overhaul and repair to machinery

etc. (As prescribed under Income Tax Act)

Total:

* In case the fixed assets are common to more than one mine, furnish combined information for all such mines together in any one of the mine's return. In the returns for other mines, give only a cross reference to the particular mine's return where-in the information is included.

** Optional and may be furnished in respect of items (i), (ii) and (iii) if the mine owner desires.

*** Including any non-recurring expenditure incurred on the acquisition of land.

2. Source of Finance (at

the end of the year) :

(i) Paid up Share Capital (Rs)

(ii) Own Capital (Rs)

(iii) Reserve & Surplus (All Types)(Rs)

(iv) Long Term loans outstanding (#)(Rs)

Name of the

Institution/ Source

Amount of Loan (Rs)

Rate of Interest

(#) Indicate the names of the lending institutions such as State Finance Corporation, Industrial Development and other Public Corporations, Co-operative Banks, Nationalised Banks and other sources along with the amount of loan from

each source and the rate of interest at which loan has been taken.

3. Interest and Rent (Rs)

(i) Interest paid during the year

(ii) Rents (excluding surface rent) paid during the year

Part - III (Consumption of Materials)

1. Quantity and cost of material consumed during the year

Description

Unit

Quantity

Value (Rs)

(i) Fuel

(a) Coal

Tonnes

(b) Diesel

Oil

Ltrs.

(c) Petrol

Ltrs.

(d) Kerosene

Ltrs.

(e) Gas

Cu.M.

(ii) Lubricant

(a) Lubricant

oil

Ltrs.

(b) Grease

Kgs.

(iii) Electricity

(a) Consumed

Kwh

(b) Generated

Kwh

(c) Sold

Kwh

(iv) Explosives (furnish full details in Part IV)

(v) Tyres

Nos.

(vi) Timber & Supports

(vii) Drill rods & kits

Nos.

(viii) Other spares & stores

2. Royalty, Rents and Payments made to DMF & NMET (Rs):

X

Paid for current year

Paid towards past arrears

(a) Royalty

(b) Dead rent

(c) Surface rent

(d) Payment made to DMF

(e) Payment made to NMET

3. Compensation paid for felling trees during the year (Rs)

4. Depreciation on fixed assets (Rs)

5. Taxes and cesses

X

Amount in Rupees paid during the year to:

X

Central Govt.

State Govt.

(i) Sales Tax

(ii) Welfare cess

(iii) Other taxes & cesses:-

(a) Mineral

cess

(b) Cess on

dead rent

(c) Others

(please specify)

6. Other expenses (Rs) :

(i) Overheads

(ii) Maintenance

(iii) Money value of other benefits paid to workmen

(iv) Payment made to professional agencies

Part -IV (Consumption of Explosives)

Licensed capacity of magazine:

(specify unit separately in kg/tonne, numbers, metres)

Item

Unit

Capacity

Classification of Explosives

Unit

Quantity consumed during the year

Estimated requirement during the next year

Small dia. (upto 32 mm)

Large dia. (above 32 mm)

Small dia. (upto 32 mm)

Large dia. (above 32 mm)

1. Gun Powder

Kg.

2. Nitrate Mixture

Kg.

X

X

X

X

a. Loose

ammonium nitrate

b. Ammonium

nitrate in cartridged form

3. Nitro compound Kg.

4. Liquid Oxygen soaked cartridges

Kg.

5. Slurry explosives (Mention different trade names)

Kg.

6. Detonators

No.s

X

X

X

X

i) Ordinary

ii)

Electrical

X

X

X

X

(a) Ordinary

(b) Delay

7. Fuse

Mts

X

X

X

X

(a) Safety

Fuse

(b)

Detonating Fuse

8. Plastic ignition cord

Mts

9. Others (specify)

(Mention the unit)

Different sizes of soaked liquid oxygen cartridges to be reported in equivalent kg. as per manufacturer's instruction.

Part-V (General Geology and Mining)

(Items 2 and 3 to be submitted separately for each mineral)

1. Exploration

(i)

Exploration activities during the year:

At the beginning of the year

During the year

Cumulative

Grid spacing/ Dimension

Drilling

No of holes

Metrage

Pitting

No of pits

Excavation (in m3)

Trenching

No of trenches

Excavation (in m3)

Length covered (in metre)

Expenditure on exploration (Rs)

X

(ii)

. Any other exploration activity during the year:

2. Reserves and Resources estimated (in tonnes).

Classification

Code

At the beginning of the year 1.4.20____

Assessed during the year

Depletion of reserves during the year

Balance resources as on 31.3.20____

(1)

(2)

(3)

(4)

(5)

(6) = (3+4-5)

A. Mineral Reserve

1. Proved Mineral Reserve

111

2. Probable mineral Reserve

121

122

3. Total Reserves

B. Remaining Resources

1. Feasibility mineral Resource

211

2. Prefeasibility mineral resource

221

222

3. Measured mineral resource

331

4. Indicated mineral resource

332

5. Inferred mineral resource

333

6. Reconnaissance mineral resource

334

7. Total remaining Resources

Total (A+B)

3. Subgrade/Mineral Reject (in tonnes). - (Information to be given in respect of mineral fractions generated and stacked/dumped below cut-off grade and above threshold value, if prescribed, having no immediate sale value)

At the beginning of the year

Generated during the year

Disposed during the year

Total stacked at the end of the year

Average grade of the mineral reject generated

4. Overburden and Waste (in m3). - (Information to be given in respect of overburden/ waste and mineral fractions generated below threshold value, if prescribed)

At the beginning of the year

Generated during the year

Disposed in dumps during the year

Back filled during the year

Total at the end of the year

5. Trees planted/ survival rate

Description

Within lease area

Outside lease area

i) Number of trees planted during the year

ii) Survival rate in percentage

iii) Total no. of trees at the end of the year

6. Type of Machinery. - Give the following information for the types of machinery in use such as hoist, fans, drills, loaders, excavators, dumpers, haulages, conveyors, pumps, etc.

Type of machinery

Capacity of each type of machinery

Unit (in which capacity is reported)

No. of machinery

Electrical/ Non-electrical (specify)

Used in opencast/ underground (specify)

7.

(i)

Details of mineral Treatment Plant, if any. - Give a brief description of the process capacity of the machinery deployed and its availability. (Submit Flow Sheet and Material Balance of the Plant separately).

(ii)

Furnish following information:

Item

Tonnage

Average Grade

Feed:

Concentrates/processed products :

(mention name)

By-products/Co-products:

(mention name)

Tailings:

Part-VI (Production, Despatches and Stocks)

(To be submitted separately for each mineral)

(Unit of Quantity in Tonnes; indicate unit of quantity if not in tonnes)

1. Production and Stocks of ROM ore

Opening stocks

Production

Closing stocks

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

A. From Underground workings

i) From Development

ii) From Stopping

B. From Opencast workings

Total

2. Ex-mine price of the ore produced (Rs per unit):

3. Recoveries at Concentrator/ Mill/ Plant:

Opening stocks

Production

Closing stocks

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

A. From Underground workings

i) From

Development

ii) From

Stoping

B. From Opencast workings

Total

2. Ex-mine price of the ore produced (Rs per unit):

3. Recoveries at Concentrator/Mill/Plant:

Opening stocks of

the Ore at concentrator/plant

Ore received from the mine

Ore treated

Quantity

Metal content/grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Concentrates * Obtained

Tailings

Closing stocks of concentrates at the

concentrator/plant

Quantity

Metal content/grade

Value (Rs)

Quantity

Metal content/grade

Quantity

Metal content/grade

*In case of any leaching method adopted, give quantity recovered and grade contained separately.

4. Recovery at the Smelter/Mill/Plant:

Opening Stocks of the concentrates at the

smelter/ plant

Concentrates received from concentrator/ plant

Concentrates received from other sources

(specify)

Concentrates sold (if any)

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Concentrates treated

Closing stocks of concentrate at the Smelter/
Plant

Metals(*) recovered (specify)

Other by-products, if any, recovered

Quantity

Metal content/ grade

Quantity

Metal content/ grade

Quantity

Grade

Value (Rs)

Quantity

Grade

Value (Rs)

(*) Please give category-wise break-up viz. blister, fire refined copper, cathodes, electrolytic copper wire bars, lead ingots, zinc cathodes, zinc dross, gold, tungsten etc.

5. Sales during the month:

Metal/ Product

Opening stocks of Metals/ Products

Place of sale

Metals/Products sold(@)

Closing stocks of Metals/ Products

Quantity

Grade

Quantity

Grade

Value(#) (Rs)

Quantity

Grade

Note:

(#) Please give ex-plant sale value.

(@) Please give category-wise break-up of metals and other products sold.

6. Details of deductions made from sale value for computation of Ex-mine price (Rs/ Unit)

Deduction claimed #

Amount (in Rs./ Unit)

Remarks

a) Cost of transportation (indicate loading station and distance from mine in remarks)

b) Loading and unloading charges

c) Railway freight, if applicable (indicate destination and distance)

d) Port Handling charges/export duty (indicate name of port)

e) Charges for sampling and analysis

f) Rent for the plot at Stocking yard

g) Other charges (specify clearly)

Total (a) to (g)

Not applicable for captive dispatches and ex-mine sales

7. Sales/ Dispatches of ore and concentrates effected for Domestic Purposes and for Exports:

Grade (ore/ Conc.)

Nature of Despatch (indicate whether Domestic

Sale or Domestic Transfer or Captive consumption or Export)

For Domestic Purposes

For export

Registration number as allotted by the Indian

Bureau of Mines to the buyer ##

Consignee name ##

Quantity

Sale value (Rs)

Country

Quantity

F.O.B Value(Rs)

To indicate separately if more than one buyer.

Note. - Mine owners are required to substantiate domestic sale value/ FOB value for each grade quoted above with copy of invoices (not to be submitted with the return; to be produced whenever required).

8. Give reasons for increase/decrease in production/nil production, if any, during the month compared to the previous month.

a)

b)

c)

9. Give reasons for increase/decrease in grade wise ex-mine price, if any, during the month compared to the previous month.

a)

b)

c)

Part-VII Cost of Production

Cost of production per tonne of ore/mineral produced

Sl.No.

Item

Cost per tonne (Rs)

(i)

Direct Cost

(a) Exploration

(b) Mining

(c) Beneficiation(Mechanical Only)

(ii)

Over-head

cost

(iii)

Depreciation

(iv)

Interest

(v)

Royalty

(vi)

Payments made

to DMF

(vii)

Payments made

to NMET

(viii)

Taxes

(ix)

Dead Rent

(x)

Others

(specify)

Total

Note. - Information given under Part VII will be kept confidential. The Government, however, will be free to utilize the information for general studies without revealing the identity of the firm.

Verification

I certify that the information furnished above is correct and complete in all respects.

Place:

Signature

Date:

Name

in full:

Designation: Owner/ Agent/ Mining Engineer/

Manager

[Form H-3]

[Substituted "Form H-1 to H-8" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(5)(b)(iii)]

For the financial year 1st April, 20__ to 31st March, 20__

Annual Return

[To be used for precious and semi-precious stones]

To

(i)

The Regional Controller of Mines

Indian Bureau of Mines

_____ Region,

PIN

(Please address to Regional Controller of Mines in whose territorial jurisdiction the mines falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

(ii)

The State Government

Part I ? (General)

1. Details of Mine:

(a)

Registration number allotted by Indian Bureau of Mines (to give registration number of the Lessee/Owner)

(b) Mine Code

(allotted by Indian Bureau of Mines)

(c) Name of

the Mineral

(d) Name of

Mine

(e) Name(s)

of other mineral(s), if any, produced from the same mine

2. Location of the Mine :

Village

Post Office

Tahsil/Taluk

District

State

PIN Code

Fax no:

E-mail:

Phone no:

Mobile:

3. Name and address of Lessee/Owner (along with fax no. and e-mail):

Name of

Lessee/Owner

Address

District

State

PIN Code³

Fax no:

E-mail:

Phone No:

Mobile:

4. Registered Office of the Lessee:

5. Director in charge :

6. Agent :

7. Manager :

8. Mining Engineer in charge:

9. Geologist in charge :

10. Transferor (previous owner), if any, and date of transfer:

11. Particulars of area operated/ Lease(Furnish information on items (i) to (vi) lease-wise in case mine workings cover more than one lease)

(i) Lease

number allotted by the State Government????????????????????

(ii) Area

under lease (hectares):

Under Forest

Outside

Forest

Total

(iii) Date of

execution of mining lease deed

(iv) Period

of lease

(v) Area for

which surface rights are held (hectares)

Under Forest

Outside

Forest

Total

(vi) Date and

period of renewal (if applicable)

(vii) In case

there is more than one mine in the same lease area, indicate name

of mine and mineral produced

12. Lease area (surface area) utilisation as at the end of

year (hectares):

Under forest

Outside forest

Total

(i) Already

exploited & abandoned by opencast (O/C) mining

(ii) Covered

under current (O/C) Workings

(iii)

Reclaimed/rehabilitated

(iv) Used for

waste disposal

(v) Occupied

by plant, buildings, residential, welfare buildings & roads

(vi) Used for

any other purpose (specify)

(vii) Work

done under progressive mine closure plan during the year

13. Ownership/exploiting Agency of the mine: (Public

Sector/Private Sector/Joint Sector)

Part - II (Employment and Wages)

1. Number of supervisory staff

employed at the mine

Description

Wholly employed

Partly employed

(i) Graduate

Mining Engineer

(ii) Diploma

Mining Engineer

(iii)

Geologist

(iv)

Surveyor

(v) Other

administrative and technical supervisory staff

Total :

2.(i) Number of days the mine worked:

(ii) No. of

shifts per day:

(iii)

Indicate reasons for work stoppage in the mine during the year

(due to strike, lockout, heavy rain, non-availability of labour,

transport bottleneck, lack of demand, uneconomic operations, etc.) and the number of days of work stoppage for each of the factors separately.

Reasons

No. of days

3. Employment and salary/

wages paid :

Maximum number of persons employed

on any one day during the year:

(i) In workings below ground on (date)

(a) (number)

(ii) In all

in the mine on (date)

(a) (number).....

Classification

Total number of man days worked during the year

No. of days worked during the year

Average daily number of persons employed

Total Wages/ Salary for the year (Rs)

Direct

Contract

Total

Male

Female

Total

(1)

2(A)

2(B)

2(C)

(3)

4(A)

4(B)

4(C)

(5)

Below Ground

Opencast

Above Ground

Total:

To include all employees exclusive to the mine and attached factory, workshop or mineral dressing plant at the mine site

Part-II A (Capital Structure)

1. Value

of Fixed Assets* (Rs?????????????)

(in respect of the mine,

beneficiation plant, mine work-shop, power and water installation)

In case this information is

furnished as combined information in another mine's return please

specify Mine Code/Mine

Name:

Description

At the beginning of the year (Rs)
 Additions during the Year (Rs)
 Sold or discarded during the year (Rs)
 Depreciation during the year (Rs)
 Net closing Balance (Rs) (2+3)- (4+5)
 Estimated market value** (Rs)

1
 2
 3
 4
 5
 6
 7

(i) Land***

(ii) Building:

Industrial

Residential

(iii) Plant and Machinery including transport equipment

iv) Capitalised Expenditure such as pre-production
 exploration, development, major overhaul and repair to machinery
 etc. (As prescribed under Income Tax Act)

Total:

* In case the fixed assets are common to more than one mine, furnish combined information for all such mines together in any one of the mine's return. In the returns for other mines, give only a cross reference to the particular mine's return where-in the information is included.

** Optional and may be furnished in respect of items (i), (ii) and (iii) if the mine owner desires.

*** Including any non-recurring expenditure incurred on the acquisition of land.

2. Source of Finance (at

the end of the year) :

(i) Paid up Share Capital (Rs)

(ii) Own Capital (Rs)

(iii) Reserve & Surplus (All Types)(Rs)

(iv) Long Term loans outstanding (#)(Rs)

Name of the

Institution/ Source

Amount of Loan (Rs)

Rate of Interest

(#) Indicate the names of the lending institutions such as State Finance Corporation, Industrial Development and other Public Corporations, Co-operative Banks, Nationalised Banks and other sources along with the amount of loan from each source and the rate of interest at which loan has been taken.

3. Interest and Rent (Rs)

(i) Interest paid during the year

(ii) Rents (excluding surface rent) paid during the year

Part - III (Consumption of Materials)

1. Quantity and cost of material consumed during the year

Description

Unit

Quantity

Value (Rs)

(i) Fuel

(a) Coal

Tonnes

(b) Diesel

Oil

Ltrs.

(c) Petrol

Ltrs.

(d) Kerosene

Ltrs.

(e) Gas

Cu.M.

(ii) Lubricant

(a) Lubricant

oil

Ltrs.

(b) Grease

Kgs.

(iii) Electricity

(a) Consumed

Kwh

(b) Generated

Kwh

(c) Sold

Kwh

(iv) Explosives (furnish full details in Part IV)

(v) Tyres

Nos.

(vi) Timber & Supports

(vii) Drill rods & kits

Nos.

(viii) Other spares & stores

2. Royalty, Rents and Payments made to DMF & NMET (Rs):

X

Paid for current year

Paid towards past arrears

(a) Royalty

(b) Dead rent

(c) Surface rent

(d) Payment made to DMF

(e) Payment made to NMET

3. Compensation paid for felling trees during the year (Rs)

4. Depreciation on fixed assets (Rs)

5. Taxes and cesses

X

Amount in Rupees paid during the year to:

X

Central Govt.

State Govt.

(i) Sales Tax

(ii) Welfare cess

(iii) Other taxes & cesses:-

(a) Mineral

cess

(b) Cess on

dead rent

(c) Others

(please specify)

6. Other expenses (Rs) :

(i) Overheads

(ii) Maintenance

(iii) Money value of other benefits paid to workmen

(iv) Payment made to professional agencies

Part -IV (Consumption of Explosives)

Licensed capacity of magazine:

(specify unit separately in kg/tonne, numbers, metres)

Item

Unit

Capacity

Classification of Explosives

Unit

Quantity consumed during the year

Estimated requirement during the next year

Small dia. (upto 32 mm)

Large dia. (above 32 mm)

Small dia. (upto 32 mm)

Large dia. (above 32 mm)

1. Gun Powder

Kg.

2. Nitrate Mixture

Kg.

X

X

X

X

a. Loose

ammonium nitrate

b. Ammonium

nitrate in cartridged form

3. Nitro compound Kg.

4. Liquid Oxygen soaked cartridges

Kg.

5. Slurry explosives (Mention different trade names)

Kg.

6. Detonators

No.s

X

X

X

X

i) Ordinary

ii)

Electrical

X

X

X

X

(a) Ordinary

(b) Delay

7. Fuse

Mts

X

X

X

X

(a) Safety

Fuse

(b)

Detonating Fuse

8. Plastic ignition cord

Mts

9. Others (specify)

(Mention the unit)

Different sizes of soaked liquid oxygen cartridges to be reported in equivalent kg. as per manufacturer's instruction.

Part-V (General Geology and Mining)

(Items 2 and 3 to be submitted separately for each mineral)

1. Exploration

(i)

Exploration activities during the year:

At the beginning of the year

During the year

Cumulative

Grid spacing/ Dimension

Drilling

No of holes

Metrage

Pitting

No of pits

Excavation (in m3)

Trenching

No of trenches

Excavation (in m3)

Length covered (in metre)

Expenditure on exploration (Rs)

X

(ii)

. Any other exploration activity during the year:

2. Reserves and Resources estimated (in tonnes).

Classification

Code

At the beginning of the year 1.4.20____

Assessed during the year

Depletion of reserves during the year

Balance resources as on 31.3.20____

(1)

(2)

(3)

(4)

(5)

(6) = (3+4-5)

A. Mineral Reserve

1. Proved Mineral Reserve

111

2. Probable mineral Reserve

121

122

3. Total Reserves

B. Remaining Resources

1. Feasibility mineral Resource

211

2. Prefeasibility mineral resource

221

222

3. Measured mineral resource

331

4. Indicated mineral resource

332

5. Inferred mineral resource

333

6. Reconnaissance mineral resource

334

7. Total remaining Resources

Total (A+B)

3. Subgrade/Mineral Reject (in tonnes). - (Information to be given in respect of mineral fractions generated and stacked/dumped below cut-off grade and above threshold value, if prescribed, having no immediate sale value)

At the beginning of the year

Generated during the year

Disposed during the year

Total stacked at the end of the year

Average grade of the mineral reject generated

4. Overburden and Waste (in m3). - (Information to be given in respect of overburden/ waste and mineral fractions generated below threshold value, if prescribed)

At the beginning of the year

Generated during the year

Disposed in dumps during the year

Back filled during the year

Total at the end of the year

5. Trees planted/ survival rate

Description

Within lease area

Outside lease area

i) Number of trees planted during the year

ii) Survival rate in percentage

iii) Total no. of trees at the end of the year

6. Type of Machinery. - Give the following information for the types of machinery in use such as hoist, fans, drills, loaders, excavators, dumpers, haulages, conveyors, pumps, etc.

Type of machinery

Capacity of each type of machinery

Unit (in which capacity is reported)

No. of machinery

Electrical/ Non-electrical (specify)

Used in opencast/ underground (specify)

7.

(i)

Details of mineral Treatment Plant, if any. - Give a brief description of the process capacity of the machinery deployed and its availability. (Submit Flow Sheet and Material Balance of the Plant separately).

(ii)

Furnish following information:

Item

Tonnage

Average Grade

Feed:

Concentrates/processed products :

(mention name)

By-products/Co-products:

(mention name)

Tailings:

Part-VI (Production, Despatches and Stocks)

(To be submitted separately for each mineral)

1. R.O.M. production

Category

Unit of quantity

Quantity

(a) Opencast workings

(b) Underground workings

2. Production, stocks and dispatches:-

Gem Variety

Industrial

Others

Rough and uncut stones

Cut and Polished Stones

No. of stones

Qty @

No. of stones

Qty @

No. of stones

Qty @

No. of stones

Qty @

A .Opening stocks

B. Production

(i) From

Opencast Working

(ii) From

underground working

Total (Production)

C. Despatches

D. Closing Stocks

E. Ex-mine Price (Rs)

@: The Unit of quantity viz. Carats/Grams/Kilogram etc., as the case may be, should be indicated under quantity.

3. Details of deductions made from sale value for computation of Ex-mine price (Rs/ Unit)

Deduction claimed #

Amount(in Rs/ Unit)

Remarks

a) Cost of transportation (indicate loading station and distance from mine in remarks)

b) Loading and unloading charges

c) Railway freight, if applicable (indicate destination and distance)

d) Port handling charges/export duty (indicate name of port)

e) Charges for sampling and analysis

f) Rent for the plot at stocking yard

g) Other charges (specify clearly)

Total (a) to (g)

Not applicable for captive dispatches and ex-mine sales

4. Sales/ Dispatches effected for Domestic Purposes and for Exports:

Grade (*)

Nature of Despatch (indicate whether Domestic

Sale or Domestic Transfer or Captive consumption or Export)

For Domestic Purposes

For export

Registration number as allotted by the Indian

Bureau of Mines to the buyer ##

Consignee name ##

Quantity

Sale value (Rs)

Country

Quantity

F.O.B Value(Rs)

*: To indicate rough and uncut stones, cut and polished stones, industrial, others

To indicate separately if more than one buyer.

Note. - Mine owners are required to substantiate domestic sale value/ FOB value for each grade of ore quoted above with copy of invoices (not to be submitted with the return; to be produced whenever required).

5. Give reasons for increase/decrease in production/nil production, if any, during the month compared to the previous month.

a)

b)

c)

6. Give reasons for increase/decrease in grade wise ex-mine price, if any, during the month compared to the previous month.

a)

b)

c)

Part-VII Cost of Production

Cost of production per unit of ore/mineral produced

Sl.No.

Item

Cost per tonne (Rs)

- (i)
Direct Cost
 - (a) Exploration
 - (b) Mining
 - (c) Beneficiation(Mechanical Only)
- (ii)
Over-head
cost
- (iii)
Depreciation
- (iv)
Interest
- (v)
Royalty
- (vi)
Payments made
to DMF
- (vii)
Payments made
to NMET
- (viii)
Taxes
- (ix)
Dead Rent
- (x)
Others
(specify)
- Total

Note. - Information given under Part VII will be kept confidential. The Government, however, will be free to utilize the information for general studies without revealing the identity of the firm.

Verification

I certify that the information furnished above is correct and complete in all respects.

Place:

Signature

Date:

Name

in full:

Designation: Owner/ Agent/ Mining Engineer/

Manager

Omitted by Notification No. G.S.R. 75 (E) dated 9.2.2011 (w.e.f 24.10.1988)

Form H-9

Annual Return

[See rule 45(1) (c) (ix)]

For the Financial Year 1st April, 20.....to 31st March, 20.....

{

MINE CODE.....

(i)

Name of the mineral

.....

(ii)

Name of mine

.....
(iii)
Name(s) of other mineral(s), if any, produced from the same mine during the year 20.....
.....
.....

To
1. The Controller General,
Nagpur
Indian Bureau of Mines,
PIN 440001
2. The Controller of Mines,
.....
Indian Bureau of Mines,
PIN.....
3. The Regional Controller of Mines,
.....
Indian Bureau of Mines,
PIN.....
4. State Government concerned
.....

Part I ? General

1. Location of the Mine:
Village:.....Post
Office:.....Tahsil/Taluka:.....
District:.....State:.....PIN:.....
.....

2. Name & Address of

(i) Lessee/Owner
:
.....

(ii) Registered Office of Lessee
:
.....

(iii) Agent
:
.....

(iv) Manager
:
.....

(v) Mining Engineer in Charge
:
.....

(vi) Geologist in Charge
:
.....

(vii) Transferor (previous lessee)if any, and date of transfer
:
.....

3. Particulars of area operated/Lease (Furnish information on items (I) to (v) lease-wise in caswe mine workings cover more than one lease)

(i) Area under lease (hectares):

Under forest

:

.....

Outside forest

:

.....

Total

:

.....

(ii) Date of execution of mining lease deed

:

.....

(iii) Period of lease

(iv) Area for which surface rights are held(hectares)

:

.....

(v) Date and period of renewal (if applicable)

:

.....

(vi) In case there is more than one mine in the samelease area, indicate name of mine and mineral produced

:

.....

4. Lease area (surface area) utilisation as at the end of year(hectares) :

Under forest

.....

Outside forest

.....

Total

.....

(i) Already exploited & abandoned by open-cast(O/C) mining

.....

(ii) Covered under current (U/C) workings

.....

(iii) Reclaimed/rehabilitated

(iv) Used for waste disposal

.....

(v) Occupied by plant, buildings, residential, welfarebuildings and roads

.....

(vi) Used for any other purpose(specify)

.....

5. Ownership/exploiting agency of mine

(i)

PUBLIC SECTOR

(ii)

PRIVATE SECTOR

(iii)

JOINT SECTOR

Part II ? Employment And Wages

1. Number of technical and supervisory staff employed at the mine

Description

Wholly employed

Part employed

(i) Graduate Mining Engineer

.....

.....

(ii) Diploma Mining Engineer

.....

.....

(iii) Geologist

.....

.....

(iv) Surveyor

.....

.....

(v) Other administrative clerical and technical supervisory staff

.....

.....

(2)(i) Number of days the mine worked:

(ii) No. of shifts per day:

(iii) Indicate reasons for work stoppage in the mine during the year such as due to strike, lockout, monsoon, non-availability of labour, transport bottleneck, lack of demand, uneconomic operation etc. and the number of days of work stoppage for each of the factors separately.

Reasons

Number of days

3. (1) Employment of Labour and wages paid Maximum number of persons employed on any one day during the year:

(i)

In workings below ground on.....(a).....

(ii)

In all in the mine on.....(a).....

Classification

Total No. of mandays worked during the year

No. of days worked during the year

Average daily number of persons employed

Total wages/Salary bill for the year

(1)

Direct

Contract

Total

(3)

Male

Female

Total

(5)

(2-A)

(2-B)

(2-C)

(4-A)

(4-B)

(4-C)

Below Ground :

(i) Foreman

& Mining mates

(ii) Face workers and loaders

(iii) Others

Open-cast workings :

(i) Foreman

& Mining mates

(ii) Face workers and loaders

(iii) Others

Above ground :

(i) Clerical & Supervisory Staff.

(excluding the superior supervisory staff.)

(ii) Workers in any Attached factory, Workshop or mineral dressing plant

(iii) Others

Total :

Part III ? Consumption Of Materials

1. Quantity and Cost of material consumed during the year

Description

Unit

Quantity

Value(Rs)

(i) [Fuel]

[Substituted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000).]

(a) Coal

[tonnes]

[Inserted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000).]

(b) Diesel Oil

Ltrs.

(c) Petrol

Ltrs.

(d) Kerosene

Ltrs.

(e) Gas

Cu.m.]

(ii) Lubricants

Lubricant oil

Ltrs.

Grease

Kgs.

(iii) Electricity

(a) Consumed

Kwh.

(b) Generated

Kwh.

(c) Sold

Kwh.

(iv) Explosives (of all types as per Form-G)

[[iv)(a)Tyres]

[Inserted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000).]

(iv)(b) Timber and supports

(iv)(c) drill rods and kits]

(v) Other materials, spares and stores

2. Royalty, Dead Rent and Surface Rent (in `000 Rupees):

Paid for current yearPaid towards past arrears

Royalty

Dead Rent

Surface Rent

3. Compensation paid for felling trees during the year(Rs.):

.....

4. Depreciation on fixed assets (Rs.):

.....

5. Taxes and cesses

(Rs)

Amount paid during the year

To Central GovernmentTo State Government

(i)Saletax

(ii) Welfare Cess

(iii) Other taxes and cesses

(a) Mineral cess

(b) Cess on dead rent

(c) Others (Please specify)

6. [Other expenses (Rs.):

(i)

Overheads

(ii)

Maintenance

(iii)

Money value of other benefits paid to workmen

(iv)

Payment made to professional agencies.]

Part IV ? General Geology And Mining

1. [Give a brief account of geological, feasibility and economic viability studies.]

[Substituted by G.S.R. 338 (E), dated 17-4-2003 (w.e.f 17-4-2003).]

(a)

Tick mark as applicable from each (i), (ii) and (iii) below:

(i)

Reconnaissance/Prospecting/General Exploration/Detailed Exploration.

(ii)

Geological Study/Pre-feasibility Study Feasibility Study.

(iii)

Intrinsically Economic/Potentially Economic/Economic.

b. Brief account of the studies indicated under 1(a) during the year.

2.

[Reserves and Resources estimation during the year.]

[Substituted by G.S.R. 833 (E), dated 21-10-2003 (w.e.f. 22-10-2003).]

Classification

Code

Quantity

Grade

(1)

(2)

(3)

(4)

Total Mineral Resources (A + B)

A. Mineral Reserve

111

1. Proved Mineral Reserve

121 and 122

2. Probable Mineral Reserve

B. Remaining Resources

1. Feasibility Mineral Resource

211

2. Prefeasibility Mineral Resource

221 and 222

3. Measured Mineral Resource

331

4. Indicated Mineral Resource

332

5. Inferred Mineral Resource

333

S6.Reconnaissance Mineral Resource

334

Note.- For the removal of doubts, the classification terms and codes mentioned in this Form shall have the same meaning as assigned to them in the Guidelines issued by Indian Bureau of Mines in this regard.

3. Type and Aggregate Horse Power of Machinery.

Type of machinery

No.

of units

Capacity

H.P.

Part V ? Production, Despatches And Stocks

(Unit of Quantity in Tonnes)

1. Production and stocks of R.O.M. ore at Mine-head

From Open-cast workings

From Underground workings

Dump workings

(a) Opening stock

(b) Production

(c) Closing Stock

2. Quantity of overburden/waste rock removed:.....

3. Quantity of mineral rejects with grades:.....

4. Grade-wise Production, Despatches and stocks of Processed Ore

[Grades

(As per royalty rates*)]

[Substituted by G.S.R. 330(E), dated 10-4-2003 (w.e.f. 10-4-2003)]

Opening stock at mine-head

Production

Despatches from mine-head

Closing stock at mine-head

PMV

(Rs./MT)

[Note.- The data in Part-V above shall be furnished grade-wise. The grades for iron ore shall be as per Form H-1, those for manganese ore as per Form H-2, for bauxite and laterite as per Form H-3, for chromite as per Form H-4, for copper, lead, zinc, pyrite, gold, tungsten as per Form H-5, for mica, as per Form H-6, for precious and semi-precious stones as per Form H-7, and for other minerals as mentioned in Form H-8, respectively.]

[Inserted by G.S.R. 330 (E), dated 10-4-2003 (w.e.f. 10-4-2003).]

5. Details of deductions (from FOR/FOB prices) used for computation of PMV (Rs./tonne)

(a) Cost of Transportation

.....

(indicate loading stations and distance from mine)

.....

(b) Loading and unloading charges

.....

(c) Railway freight, if applicable

.....

(indicate destination and distance)

(d) Port handling/export duty/and other charges, etc.

.....

(indicate name of port)

.....

Total (a) to (d)

6. Sales/Despatches effected for Domestic Consumption and for Exports

Grade of ore

[Place of sale]

[Inserted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000).]

For Domestic Consumption

For export

Consignee

Quantity

SaleValue (Rs.)

Country

Quantity

F.O.B.

Value (Rs.)

7. Give reasons for increase/decrease in production, if any, during the year compared to the previous year.

Part VI ? Cost Of Production

Cost of production per tonne of ore/mineral produced:

Item

Cost per metric tonne (Rs.)

(i) Direct cost:

(a) Exploration

(b) Mining

(c) Beneficiation (Mechanical only)

(ii) Over head cost

(iii) Depreciation

(iv) Interest

(v) Royalty

(vi) Taxes

(vii) Dead Rent

(viii) Others (specify)

Total:

Note.- Information given under Part VI will be kept confidential, if required. The Government, however, will be free to utilise the information for general studies without revealing the identity or working cost of the firm.

I certify that the information furnished above is correct and complete in all respects.

Place.....

Date.....

Signature.....

Name in full.....

Designation : Owner/Agent/Mining Engineer/Manager

[Substituted by G.S.R. 55(E), dated 17-1-2000 (w.e.f. 18-1-2000).]

l}

Form I

Notice Of Certain Appointment/resignation/termination/change Of Address

(See rule 46)

Mine Code.....

Important

Notice in this form shall reach the concerned authorities fifteen days of new appointment or termination from employment or change in address of Agent, Mining Engineer, Geologist or Manager.

To

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

2. The Controller of Mines,

.....
Indian Bureau of Mines,

PIN.....

3. The Regional Controller of Mines,

.....
Indian Bureau of Mines,

PIN.....

4. State Government concerned

.....
1. Name and address of the holder of Mining Lease or Prospecting License.

2. Name of mineral/minerals for which Mining Lease/Prospecting License is granted

(a).....(b)

.....
(c)(d)

.....
3. Name of mine/Prospecting Licensed area

.....
4. Location of mine/Prospecting Licensed area

(i) Topo-sheet Number

.....
(ii) Cadastral Survey or Khasra Number

.....
(iii) Village

.....
(a) Taluka

.....
(b) District

.....
(c) State

.....
5. Particulars of Mining Lease/Prospecting License:

(i) Date of execution

(ii) Period

.....Years,

from.....

to.....

(iii) Area under Mining Lease/Prospecting License

.....(hectares)

6. Please indicate whether notice is given in respect of:

(i) New appointment

.....

(ii) Resignation/termination of employment

.....

(iii) Change of address:

.....

(Strike out whichever is not applicable)

7. In case of appointment of Agent/Mining Engineer/Geologist/Manager, please indicate:

(i) Name:

.....

(ii) Designation:

.....

(iii) Address:

.....

(iv) Qualifications:

.....

(v) University/Institution from which passed:

.....

(vi) Date of appointment:

.....

8. If the appointment is that of a Mining Engineer or a Geologist, please indicate:

(i) Whether appointment is:

Whole time

Part time

(Please tick (?) mark whichever is applicable)

(ii) Names, locations and ownership of all other mines/Prospecting License which he will supervise:

.....

9. In case of resignation/termination of employment of Agent/Mining Engineer/Geologist/Manager, please indicate:

(i) Name:

.....

(ii) Designation:

.....

(iii) Date of resignation/termination of employment

.....

(In case the vacancy so created has been filled in, please furnish the particulars of the same in columns 6 & 7)

10. In case of change of address of the Lessee/Agent/Mining Engineer/Geologist/Manager, please indicate:

(i) Name:

.....

(ii) Designation:

.....

(iii) Present address:

.....

(iv) Date of change of address:

.....

Place:.....

Signature.....

Date:

Name in full:.....

Designation: Owner/Licensee

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

Form J

Notice Of Sinking Shafts And Boreholes

(See rule 47)

Mine Code.....

Important

Notice in this form shall be sent to the concerned authorities within fifteen days after the commencement of sinking shafts/boreholes.

To

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

3. The Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4. State Government concerned

.....

1. Name of prospect/mine and mineral worked/prospected

.....

2. Name and address of Licensee/Lessee

.....

3. Location

.....

(i) Topo-sheet Number

.....

(ii) Village

.....

(iii) Taluka

.....

(iv) District

.....

(v) State

.....

4. Number of shafts/boreholes intended to be sunk or extended (Attach a plan on a scale not less than 1 centimetre = 40 metres indicating the precise location of the shaft/borehole).

5. Purpose for which each of the shafts/boreholes is intended to be sunk or extended.

6. Type of shaft(s)/contemplated and its/their dimension(s).

7. Type of drill used and size of core to be obtained.

8. Intended depth upto which shaft/boreholes is to be extended
9. If the shaft/borehole commences from underground the depth of the level at which the shaft/boreholes is sunk.
10. Name and qualification of the geologist or mining engineer in charge of the operation
11. Date of commencement of proposed shaft sinking/drilling operation.

Place.....

Date.....

Signature.....

Name in full.....

Designation : Owner/Agent/Mining Engineer/Manager

*This should be sent to the Controller of Mines and Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified from time to time by the Controller General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

Form K

Particulars To Be Recorded In A Durable Bound Paged Book In Respect Of Each Borehole/pit/shaft

(See rule 48)

MINE CODE.....

1.

Name of the mineral or Minerals for which the license or lease is granted:

.....

2.

Name and address of the Licensee or Lessee :

.....

3.

Name of prospect/mine:

.....

4.

Location:

(i) Topo-sheet Number

.....

(ii) Cadastral Survey or Khasra number

.....

(iii) Village:

.....

(iv) Taluka:

.....

(v) District:

.....

(vi) State:

.....

5.

Type and make of the drill and size of core.

.....

6.

Bore hole/pit number its location:

.....

(a) Reduced levels at the collar of the borehole/pit.

.....

(b) Inclination and bearing of the hole

.....

(c) Altitude of the formation.

.....

7.

Duration of drilling/pitting:

.....

(a) Date of commencement

.....

(b) Date of completion

.....

8.

Total length of the hold/pit/shaft:

.....

9.

Purpose of drilling/pitting:

.....

10.

Total operating expenditure incurred:

.....

11.

Details of intersection (as given below)

Sr.No.

RUN DETAILS

Size of core/pit/shaft

Percentage recovery of core

Lithology

Analysis details (Major Radicals a b c d)

Remarks

Frominmetre

To in metres

Width in metres

True width in metres

1

2

3

4

5

6

7

8

9

10

1.

2.

3.

Place.....

Date.....

Signature.....

Name in full.....

Designation : Owner/Agent/Mining Engineer/Manager

Form L

Notice Of Transfer Of Prospecting License Or Mining Lease

(See Rule 50)

Mine Code.....

Important

Notice in this Form shall reach the concerned authorities within thirty days of the date of such transfer.

To

1. The Controller General,

Nagpur

Indian Bureau of Mines,

PIN 440001

*2. The Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

*3. The Regional Controller of Mines,

.....

Indian Bureau of Mines,

PIN.....

4. State Government concerned

.....

1. Name(s) of mineral(s) worked

.....

2. Name and address of Licensee/Lessee

.....

3. Particulars of the Prospecting License/Mining Lease

.....

(i) Date of execution

.....

(ii) Period

.....years, from.....to.....

(iii) Area under License/Lease

.....hectares.

4. Location of the prospecting area/mining lease area:

.....

(i) Topo-sheet number

.....

(ii) Cadastral map or khasra number

.....

(iii) Village

.....

(iv)(a) Taluka

.....

(b) District

.....

(c) State

.....

(v)(a) Nearest Railway Station

.....

(b) The distance there from

.....kilometres

(vi)(a) Nearest Rest house/Dak bungalow

.....

(b) Its distance from

(1) the Railway Station

.....kilometres

(2) the prospecting license area/mine

.....

5. Name and address of the Transferee or Assignee

.....

PIN.....

Place:

.....

Signature:.....

Date:

.....

Name in full:.....

Designation: Lessee/Licensee.....

*This should be sent to the Controller of Mines/Regional Controller of Mines in whose territorial jurisdiction the area/mine falls as notified from time to time by the Controller-General, Indian Bureau of Mines, under rule 62 of the Mineral Conservation and Development Rules, 1988.

Guidelines For Submission Of Returns

A. Authority to who to be sent:

The Owner, Agent, Manager or Mining Engineer shall submit to the (I) Controller General, Indian Bureau of Mines, Nagpur, (ii) the concerned Controller of Mines and the Regional Controller of Mines, as notified from time to time under Rule 62 of Mineral Conservation and Development Rules, 1988 and (iii) the State Government concerned:

(a)

Monthly return in Form F

(b)

Annual Return in Form G, and

(c)

Annual Return in Form H.

B. Time Schedule :

1. Monthly Return in Form F: Before 15th day of every month in respect of preceding month.

2. Annual Return in Form G: Before 1st July each year for the preceding financial year in respect of mines using explosives.

3. Annual Return in Form-H: Before 1st July each year for the preceding financial year.

C. General Instructions :

1. Do not leave any column blank. In case information is "Nil" in respect of any item(s) or certain item(s) are "Not applicable" the same should be indicated against all such items. For any clarification/instructions, consult the Controller General, Indian Bureau of Mines, Nagpur.

2. If more than one mineral is produced from the same mine, indicate the names of all the minerals produced.

3. The return is to be submitted even during the period of discontinuance, furnishing necessary information inclusive of "NIL" information.

4. In case ownership of the mine changed during the reference period, separate returns have to be filled by each for the respective periods of ownership.

D. Lease Details:

1. Where any State Government itself is the owner of the mine, the name of the State Government as well as the name and address of the exploiting agency should be indicated.

2. Where any State Government itself is the owner of the mine, indicate the area of operation.

3. In case the lease is expired and not renewed, clarify whether mine is working under Working Permit.

E. Employment of Labour and Wages Paid: Part-II (Annual Return)

1. Give day of the week and the date and month on the day of maximum employment.

2. Total number of Mandays worked is obtained by adding the daily attendance for the whole period.

3. Average daily employment is obtained by dividing the number of man days worked by the number of working days.

The total shown in column (4-C) should agree with the quotient obtained by dividing the total shown in column (2-C) by

the number of working days shown in column(3).

4. Wage includes all cash payments including bonus. Employers' contributions to provident funds, welfare activities etc. Concessions in kind should not be included in wages.

5. Persons employed in the removal of overburden should be included among "Others" and not among "Miners and Loaders" or "Face worker and Loaders".

F. Pit's Mouth Value:

1. The Pit's Mouth Value should represent the sale value of the mineral at the pit head. In case of sales effected on F.O.R. or F.O.B. or any other basis, pit head sale value should be arrived at after deducting all the expenses incurred from mine to railway station or port or other point of sale, as the case may be (such as expenses on transportation, loading and unloading charges, railway freight, sampling and analysis, port handling, export duty, cess, etc.)

2. In case of captive mines, cost of production may be considered to represent the Pit's Mouth Value.

3. The Pit's Mouth Value may be indicated in respect of each grade of ore sold in accordance with definition. In case, there is no sale of a particular grade or grades produced during the period, the sale value of each grade in any of the immediate earlier period may be indicated.

G. Production:

1. In case of mines producing more than one mineral from the same mine, a combined return (except production part) may be submitted for all such minerals. However, production part of the return may be submitted separately for each mineral in the prescribed formats.

2. Give complete chemical analysis of a representative sample of each grade of ore sold/despatched during the period in a separate sheet and attach with the return. (Give the analysis in respect of the sale/despatch grades which are different from the production grades already covered.)

H. Abbreviations used in the above Form:

Govt.

Government

Ltd. Co.

Limited Company

&

and

No.

Number

Rs.

Rupees

Col.

Column

Ltrs.

Litres

Cu.Mtrs.

Cubic Metres

Kgs.

Kilograms

Kwh.

Kilo Watt Hour

R.O.M.

Run-of-Mine

F.O.R.

Free on Rail

Km.

Kilometre

%

Percentage

F.O.B.

Free on Board

MCM

Million Cubic Metre

mm

Millimetre

[Form-M]

[Substituted "Form M to O" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(1)]

(Application for registration under Rule 45 of MCDR for undertaking mining or trading or storage or end use or export of minerals)

Note. - If there is any change after registration in any of the fields, the form may be updated accordingly and informed to the Controller General, Indian Bureau of Mines

To.

The Controller General

Indian Bureau of Mines

Nagpur-440001

(Application to be filed through the respective Regional Office of Indian Bureau of Mines under whose jurisdiction the State or Union Territory in which the registered office or the office of the association or individual or firm or company is located)

1. *Category of applicant: (Please tick mark below)

? Individual

? Association of individuals

? Firm

? Company registered under Companies Act

2. *Type of business/activity: (Please tick mark options given below, multiple options permitted)

? Mining

? Trading of minerals

? Storage of minerals

? End-user of minerals (including consumption from captive mines)

? Export of minerals

3. Details of the applicant:

(a)

In case of individual applicant (includes owner, agent, mining engineer or manager of every mine):

(i)

Name

Shri/ Smt.

(First name)/ (Middle name)/ (Last name)

Father

name

Shri (First

name)/ (Middle name)/ (Last name)

Date of

Birth

(DD/MM/YYYY)

(ii)

Position

in mine(please tick mark the option)

? Owner

? Agent

? Mining

engineer

? Manager

(iii)

Address

(Door number/

building number/ plot number)

Block

(street

number/ block number)

Taluka

District

State/ U.T

Pin code

E-mail

(iv)

Telephone

Office

:

Fax

:

Residence

:

Mobile :

(v)

PAN number

(vi)

Voter ID

number

(vii)

Passport

number/ Driving License number

(b)

In case of association of individuals:

(i)

Name of

Association, or name of the Signing authority of association

Father

name (of signing authority)

Date of

Birth

(ii)

Address

(Door number/

building number/ plot number)

Block

(street

number/ block number)

Taluka

District

State/ U.T

Pin code

E-mail

(iii)

Telephone

Office

:

Fax

:

Residence

:

Mobile :

(iv)

Details of

Associates

Name

PAN

number

Voter

ID number

Citizenship

Passport

number/ Driving License number (if available)

(c)

In case of a Firm:

(i)

Name of

Firm

(ii)

Address

(Door number/

building number/ plot number)

Block

(street

number/ block number)

Taluka

District

State/ U.T

Pin Code

E-mail

(iii)

Telephone

Office

:

Fax

:

Residence

:

Mobile :

(iv)

Details of

partners in the Firm

Name

of partner

PAN
number
Voter
ID number
Citizenship
Passport
number/ Driving License number (if available)
Firm Type
(Tick)
Registered/
Unregistered
(v)
Registration
number of Firm
(as
registered under Indian Partnership Act, 1932)
PAN
No.
TIN
No.
TAN
No.
(vi)
Name of
the State where registered
(vii)
Date of
registration
(dd/mm/yyyy)
(d)
In case of a company:
(i)
Name of
Company
(ii)
Registered
Address
State/ U.T
Pin code
E-mail
(iii)
Telephone
Office
:
Fax :
(iv)
Details of
Directors in the Company
Name
PAN
number

Voter

ID number

Citizenship

Passport

number/ driving License number (if available)

(v)

Registration

number of Company(as registered under Indian Companies Act,
1956)

TAN

No.

TIN

No.

(vi)

Name of

the State where registered

(vii)

Date of

registration

(dd/mm/yyyy)

(viii)

Details of

Officer responsible for conduct of business of the Company

Name

Designation

Address

Phone No.

Office :

Residence :

Mobile :

PAN No.

Voter ID No.

Passport No./

Driving License No.

(e)

State License details (only for State License holder under section 23 C of MMDR Act) :

State License No.

State

Area of Business (District)

Date of issue

Valid upto (dd/mm/yyyy)

Issuing Authority

Name of Minerals

4. Please give details of mines held at the time of applying for registration, if any, by the Individual/ Association of
Individuals/ Firms or Company.

Sl. No.

Name of the mine

Mine code assigned by IBM

5. Please give details of prospecting license held at the time of applying for registration, if any, by the Individual/
Association of Individuals/ Firms or Company.

Sr. No.

Location of PL area
Area held under PL (in ha.)
Name of Minerals
Date of grant
Period
Date of execution of License
Village
Taluka
District
State
Latitude (ddmmss)
Longitude (ddmmss)

6. Please give details of reconnaissance License held at the time of applying for registration, if any, by the Individual/ Association of Individuals/ Firms or Company.

Sr. No.
Location of RP
Area held under RP (in ha.)
Name of Minerals
Date of grant
Period
Date of execution of License
Villages
Talukas
Districts
State
Latitude (ddmmss)
Longitude (ddmmss)

7. If engaged in mineral trading/ storage and export, please give details of storage facilities owned at the time of applying for registration.

Sr. No.
Location(s) of area used for storage
Area Owned/held under rent (In hectares)
Name of Minerals
Remarks
Village
Taluka
District
State
Latitude (ddmmss)
Longitude (ddmmss)

8. If engaged in production or manufacturing through a mineral based industry, please give details of mineral consumption:

Sr. No.
Location(s) of plant where mineral is used
Name of the plant
Mineral consumed
Average consumption per year
Remarks
Village
Taluka
District

State _____
Latitude (ddmmss) _____
Longitude (ddmmss) _____
Verification
I _____ S/o / D/o / W/o _____ age _____ occupation _____ resident of _____
village/town/city post office _____ police station _____ taluka _____ district _____
state _____ certify that the information furnished above is complete and correct in all respects.

Place:

Signature:

Date:

Name in full:

Not to be filled by the applicant

(For internal use of the Indian Bureau of Mines)

Registration No. assigns by

IBM :

{

}

[Form-N]

[Substituted "Form M to O" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(6)(i)]

For the month of _____ 20

Monthly Return

To

(i)

The State Government

(ii)

The Regional Controller of Mines

Indian Bureau of Mines

_____ Region,

PIN:

(Please address to Regional Controller of Mines in whose territorial jurisdiction the area falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

Instructions for Filling the Form

1. Quantity to be reported in tonnes. If not please specify the unit.
2. Value to be reported in rupees only.
3. Registration number means the registration number allotted by Indian Bureau of Mines to the lessee/ owner or to a trader/ stockist/ end-use mineral based industry/ exporter.
4. Ore grade for various minerals, as given in the form, to be strictly used while reporting.

1. General Particulars

Registration No. (allotted by IBM)

Name and Address

Plant Name/ Storage location, if available

Latitude and Longitude

Name of activity(s) reported

(Tick whichever is/ are applicable)

(a)

Trading

(b)

Export

(c)

End-use

(d)

Storage

2. Details Of The Activity. - (Quantity to be reported in tonnes. If not please specify the unit)

(a)

Trading Activity

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore purchased during the month (within the country)

Ore imported during the month

Ore dispatched during the month

Closing stock

Quantity

Registration number as allotted by the Indian

Bureau of Mines to the supplier (to indicate separately if more than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Registration number as allotted by the Indian

Bureau of Mines to the buyer (to indicate separately if more than one buyer)

Quantity

Value (in Rs)

Quantity

(b)

Export of ore

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore procured during the month for export (from within the country)

Ore imported during the month

Ore exported during the month

Closing stock

Quantity

Registration number as allotted by the Indian

Bureau of Mines to the supplier (to indicate separately if more than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Quantity

(c)

End-use mineral based activity

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore procured during the month (within the country)

Ore imported during the month

Ore consumed during the month

Ore dispatched during the month

Closing stock

Quantity

Registration number as allotted by the Indian Bureau of Mines to the supplier (to indicate separately if more than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Quantity

Value (in Rs)

Registration number as allotted by the Indian Bureau of Mines to the buyer (to indicate separately if more than one buyer)

Quantity

Value (in Rs)

Quantity

(d)

Storage Activity

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore received during the month (within the country)

Ore imported during the month

Ore dispatched during the month

Closing stock

Quantity

Registration number as allotted by the Indian Bureau of Mines to the supplier (to indicate separately if more than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Registration number as allotted by the Indian Bureau of Mines to the person/ company to whom ore dispatched (to indicate separately if more than one person/ company)

Quantity

Value (in Rs)

Quantity

Verification

I, _____ S/o / D/o / W/o _____ age _____ occupation _____ resident of _____ village/town/city post office _____ police station _____ taluka _____ district _____ state _____ certify that the information furnished above is complete and correct in all respects.

Place:

Signature:

Date:

Name in full:

Grades of minerals to be reported in the above tables are as given below. (If separate grades are not mentioned below, report the mineral name against grade):

Mineral

Grades

Iron ore

(i) Lumps:

- a) Below 51% Fe
- b) 51% to below 55% Fe
- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

(ii) Fines:

- a) Below 51% Fe
- b) 51% to below 55% Fe
- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

(iii) Concentrates

(iv) Calibrated Lump Ore (CLO)

(Quantity already reported in Lumps should not be reported against CLO)

- a) Below 62% Fe (CLO any size)
- b) 62% to below 65% Fe (5-18 mm size CLO)
- c) 62% to below 65% Fe (10-40 mm size CLO)
- d) 62% to below 65% Fe (CLO others)
- e) 65% and above Fe (5-18 mm size CLO)
- f) 65% and above Fe (10-40 mm size CLO)
- g) 65% and above Fe (CLO others)

(v) ROM ore

- a) Below 51% Fe
- b) 51% to below 55% Fe

- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

Manganese Ore

- (i) Ore
 - a) Below 25% Mn
 - b) 25% to below 35% Mn
 - c) 35% to below 46% Mn
 - d) 46% and above Mn
 - e) Dioxide ore

(ii) Concentrates

Bauxite

(i) For use in alumina and aluminium extraction:-

- a) Below 40% Al_2O_3
- b) 40% to below 45% Al_2O_3
- c) 45% to below 50% Al_2O_3
- d) 50% to below 55% Al_2O_3
- e) 55% to below 60% Al_2O_3
- f) 60% and above Al_2O_3

(ii) For use other than alumina and aluminium metal extraction

- a) Cement
- b) Abrasive
- c) Refractory
- d) Chemical

Chromite

- (i) Lumps
 - a) Below 40% Cr_2O_3
 - b) 40% to below 52 % Cr_2O_3
 - c) 52% and above Cr_2O_3

(ii) Fines

- a) Below 40% Cr_2O_3
- b) 40% to below 52 % Cr_2O_3
- c) 52% and above Cr_2O_3

(iii) Concentrates

(iv) ROM ore

- a) Below 40% Cr_2O_3
- b) 40% to below 52 % Cr_2O_3
- c) 52% and above Cr_2O_3

Asbestos

- a) Amphibole
- b) Chrysotile

Fluorite/ Fluorspar

- a) 80% and above CaF_2
- b) 70% to below 80% CaF_2
- c) 30% to below 70% CaF_2
- d) Below 30% CaF_2

Graphite

- a) With 80% or more fixed carbon

b) With 40 % or more fixed carbon but less than 80% fixed carbon

c) With 20% or more fixed carbon but less than 40% fixed carbon

d) With less than 20% fixed carbon

Kyanite

a) 40% and above Al_2O_3

b) Below 40% Al_2O_3

Limestone

a) LD Grade (less than 1.5% silica content)

b) SMS

c) BF

d) Chemical

e) Cement

Rock Phosphate/ Phosphorite

a) Above 30% P_2O_5

Above 25% to 30% P_2O_5

Above 20% to 25% P_2O_5

Upto 20% P_2O_5

Precious and semiprecious stones

a) Rough and uncut stones

b) Cut and polished stones

c) Industrial

d) Others

[Form-O]

[Substituted "Form M to O" by Notification No. G.S.R. 430 (E) dated 19.4.2016 (w.e.f. 24.10.1988)]

[See rule 45(6)(ii)]

For the financial year 1st April, 20 _____ to 31st March, 20 _____

Monthly Return

To

(i)

The State Government

(ii)

The Regional Controller of Mines

Indian Bureau of Mines

_____Region,

PIN:

(Please address to Regional Controller of Mines in whose territorial jurisdiction the area falls as notified from time to time by the Controller General, Indian Bureau of Mines under rule 62 of the Mineral Conservation and Development Rules, 1988)

(iii)

The Chief Mineral Economist,

Indian Bureau of Mines

Instructions for Filling the Form

a) Quantity to be reported in tonnes. If not please specify the unit.

b) Value to be reported in rupees only.

c) Registration number means the registration number allotted by Indian Bureau of Mines to the lessee/owner or to a trader/ stockist/ end-use mineral based industry/ exporter.

d) Ore grade for various minerals, as given in the form, to be strictly used while reporting.

e) Item 5 related to raw materials consumed may be filled up by all end use industry and iron & steel industry also.

1. General Particulars

Registration No. (allotted by IBM)

Name and Address

Plant Name/ Storage location, if available

Latitude and Longitude

Name of activity(s) reported

(Tick whichever is/ are applicable)

(a)

Trading

(b)

Export

(c)

End-use

(d)

Storage

2. Details Of The Activity. - (Quantity to be reported in tonnes. If not please specify the unit)

(a)

Trading Activity

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore purchased during the month (within the country)

Ore imported during the month

Ore dispatched during the month

Closing stock

Quantity

Registration number as allotted by the Indian

Bureau of Mines to the supplier (to indicate separately if more than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Registration number as allotted by the Indian

Bureau of Mines to the buyer (to indicate separately if more than one buyer)

Quantity

Value (in Rs)

Quantity

(b)

Export of ore

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore procured during the month for export (from within the country)

Ore imported during the month

Ore exported during the month

Closing stock

Quantity

Registration number as allotted by the Indian
Bureau of Mines to the supplier (to indicate separately if more
than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Quantity

(c)

End-use mineral based activity

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore procured during the month (within the
country)

Ore imported during the month

Ore consumed during the month

Ore dispatched during the month

Closing stock

Quantity

Registration number as allotted by the Indian Bureau of Mines
to the supplier (to indicate separately if more than one
supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Quantity

Value (in Rs)

Registration number as allotted by the Indian Bureau of Mines
to the buyer (to indicate separately if more than one buyer)

Quantity

Value (in Rs)

Quantity

(d)

Storage Activity

Mineral/ Ore

Grade of mineral/ ore #

Opening stock

Ore received during the month (within the
country)

Ore imported during the month

Ore dispatched during the month

Closing stock

Quantity

Registration number as allotted by the Indian

Bureau of Mines to the supplier (to indicate separately if more than one supplier)

Quantity

Value (in Rs)

Country

Quantity

Value (in Rs)

Registration number as allotted by the Indian

Bureau of Mines to the person/ company to whom ore dispatched (to indicate separately if more than one person/ company)

Quantity

Value (in Rs)

Quantity

Note:

(a)

Only end-use mineral based industry to respond to section 3 to 6

(b)

Information to be given separately for each industry and each unit

3. Information Regarding end-use Mineral based Industries (other than Iron and Steel Industry)

(i)

Name of Industry :

Name of Plant:

(ii)

(a) State :

(b) District :

(c) Location :

(iii)

Details on products manufactured with their capacities and production :

Products

Annual installed capacity during the year (in tonnes)

Production (in tonnes)

Previous financial year

Present financial year

(1)

(2)

(3)

(4)

Finished Products

i)

ii)

Intermediate Products

i)

ii)

By-Products

i)

ii)

Expansion programme undertaken and progress made during the year :

(iv)

Expansion programme/ Plan envisaged for future :

(v)

Research & Development programme carried out during the year (give details) :

4. Information Regarding Iron and Steel Industry

(i)

Name of Industry :

(ii)

(a) State :

(b) District :

(c) Location :

(iii)

Products manufactured with their capacity and
production :

Products

Installed capacity (in tonnes)

Production (in tonnes)

Remarks

Previous financial year

Present financial year

(a) Sinter

i) Self fluxing

ii) Ordinary

(b) Pellets

(c) Coal

i) Clean coal

ii) Coke (own production)

(d) Pig iron

i) Hot metal (total)

ii) Hot metal for own consumption.

iii) Pig iron for sale

(e) Sponge Iron

(f) Hot Briquetted Iron

(g) Steel

i) Liquid Steel/ Crude Steel

ii) Total Saleable Steel

a) Semi-finished Steel

b) Finished Steel

(h) Tin plates

(i) Sulphuric acid

(j) Refractories/bricks

(k) Fertilizers

(l) Any other product/by-product

Coke purchased (in tonnes)

previous year

present year

(iv)

Expansion programme undertaken and progress made during the year :

(v)

Expansion programme /Plan envisaged for future :

(vi)

Research & Development programme carried out during the year (give details) :

5. Details of Raw Materials Consumed in Production {including Electricity (in KWh), Coal and Petroleum products}

Raw Material

Actual Consumption*

Estimated Requirement*

Mineral/ Ore/ Metal/ Ferroalloy

Physical Specification

Chemical Specification

Previous financial year

Present financial year

Indigenous

Imported

Indigenous

Imported

Next financial year

Next to Next financial year

(1)

(2)

(3)

(4)

(5)

* Quantity to be reported in tonnes. If not please specify the unit.

Type@

Mineral/ Ore/ Metal/ Ferroalloy

Indigenous

Imported

Name & address of supplier

Source of supply (mine or area)

Indicate the distance of mine/ rail to plant (in km)

Transportation cost per unit by Rail/ Road

Quantity*

Price per unit at factory site (in Rs)

Name & complete address of supplier (country wise)

Quantity purchased*

Cost per unit at factory site (in Rs)

Mine Code

District

Mode

Cost per unit (in Rs)

Address

Country

@ Indigenous/ Imported; * Quantity to be reported in tonnes. If not please specify the unit.

Verification

I, _____ S/o / D/o / W/o _____ age _____ occupation _____ resident of _____ village/town/city post office _____ police station _____ taluka _____ district _____ state _____ certify that the information furnished above is complete and correct in all respects.

Grades of minerals to be reported in the above tables are as given below. (If separate grades are not mentioned below, report the mineral name against grade):

Mineral

Grades

Iron ore

(i) Lumps:

- a) Below 51% Fe
- b) 51% to below 55% Fe
- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

(ii) Fines:

- a) Below 51% Fe
- b) 51% to below 55% Fe
- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

(iii) Concentrates

(iv) Calibrated Lump Ore (CLO)

(Quantity already reported in Lumps should not be reported against CLO)

- a) Below 62% Fe (CLO any size)
- b) 62% to below 65% Fe (5-18 mm size CLO)
- c) 62% to below 65% Fe (10-40 mm size CLO)
- d) 62% to below 65% Fe (CLO others)
- e) 65% and above Fe (5-18 mm size CLO)
- f) 65% and above Fe (10-40 mm size CLO)
- g) 65% and above Fe (CLO others)

(v) ROM ore

- a) Below 51% Fe
- b) 51% to below 55% Fe
- c) 55% to below 58% Fe
- d) 58% to below 60% Fe
- e) 60% to below 62% Fe
- f) 62% to below 65% Fe
- g) 65% and above Fe

Manganese Ore

(i) Ore

- a) Below 25% Mn
- b) 25% to below 35% Mn
- c) 35% to below 46% Mn
- d) 46% and above Mn
- e) Dioxide ore

(ii) Concentrates

Bauxite

- (i) For use in alumina and aluminium extraction:-

- a) Below 40% Al_2O_3
- b) 40% to below 45% Al_2O_3
- c) 45% to below 50% Al_2O_3
- d) 50% to below 55% Al_2O_3
- e) 55% to below 60% Al_2O_3
- f) 60% and above Al_2O_3
- (ii) For use other than alumina and aluminium metal extraction
 - a) Cement
 - b) Abrasive
 - c) Refractory
 - d) Chemical
- Chromite
 - (i) Lumps
 - a) Below 40% Cr_2O_3
 - b) 40% to below 52 % Cr_2O_3
 - c) 52% and above Cr_2O_3
 - (ii) Fines
 - a) Below 40% Cr_2O_3
 - b) 40% to below 52 % Cr_2O_3
 - c) 52% and above Cr_2O_3
 - (iii) Concentrates
 - (iv) ROM ore
 - a) Below 40% Cr_2O_3
 - b) 40% to below 52 % Cr_2O_3
 - c) 52% and above Cr_2O_3
- Asbestos
 - a) Amphibole
 - b) Chrysotile
- Fluorite/ Fluorspar
 - a) 80% and above CaF_2
 - b) 70% to below 80% CaF_2
 - c) 30% to below 70% CaF_2
 - d) Below 30% CaF_2
- Graphite
 - a) With 80% or more fixed carbon
 - b) With 40 % or more fixed carbon but less than 80% fixed carbon
 - c) With 20% or more fixed carbon but less than 40% fixed carbon
 - d) With less than 20% fixed carbon
- Kyanite
 - a) 40% and above Al_2O_3
 - b) Below 40% Al_2O_3
- Limestone
 - a) LD Grade (less than 1.5% silica content)
 - b) SMS
 - c) BF
 - d) Chemical
 - e) Cement
- Rock Phosphate/ Phosphorite

a) Above 30% P₂O₅

b) Above 25% to 30% P₂O₅

c) Above 20% to 25% P₂O₅

d) Upto 20% P₂O₅

Precious and semiprecious stones

a) Rough and uncut stones

b) Cut and polished stones

c) Industrial

d) Others

Related AI tags, queries and research notes

Translation